



11-13-2019
1159-01
19-CON-01-1159
38557

COLLECTIVE BARGAINING AGREEMENT

BETWEEN

WESTERN RESERVE EDUCATION ASSOCIATION

AND THE

WESTERN RESERVE BOARD OF EDUCATION

JULY 1, 2019 THROUGH JUNE 30, 2022

TABLE OF CONTENTS

	<u>PAGE</u>
ARTICLE I - <u>NEGOTIATIONS AGREEMENT</u>	
1.01 Preamble	1
1.02 Recognition	1
1.03 Negotiation Teams	2
1.04 Negotiation Procedure	2
1.05 Inclusion.....	5
1.06 Proofreading Final Agreement.....	5
1.07 Distribution of Agreement	5
1.08 In-Term Bargaining on No Child Left Behind Requirements (“NCLB”)	5
ARTICLE II - <u>GRIEVANCE PROCEDURE</u>	
2.01 Definitions.....	7
2.02 Initiating and Processing.....	7
2.03 Grievance Impasse	8
2.04 General Procedures	8
ARTICLE III - <u>EMPLOYMENT PRACTICES</u>	
3.01 Principal/Grade Division Ratio.....	10
3.02 Secretary/Building Ratio.....	10
3.03 Lunch Duties	10
3.04 Bus Duty	10
3.05 Classroom Size/Maximum Number of Pupils	10
3.06 Planning Time/Daily Minimum/Emergency Substitution/Scheduling of Classes Between Buildings.....	11
3.07 Educational Service Personnel.....	12
3.08 Teacher Workday.....	12
3.09 Contract Year	12
3.10 Reduction In Force.....	13
3.11 Transfers, Assignments and Vacancies.....	15
3.12 Non-renewal of Contracts	19
3.13 Teacher Evaluation System.....	19
3.14 Smoke and Drug-Free Environment	24
3.15 Policies and Procedures	24
3.16 Sequence of Contracts.....	24
3.17 Workload.....	24
3.18 Personnel Files	24
3.19 Health and Safety Concerns.....	25
3.20 Long Distance Learning.....	25
3.21 Resident Educator Program	26
3.22 Local Professional Development Committee	34

ARTICLE III - EMPLOYMENT PRACTICES (Continued)

3.23	Student Discipline and Professional Staff Member Protection.....	35
3.24	Employee Discipline	35
3.25	Labor-Management Committee	38
3.26	Release of Personal Information	38
3.27	Open Enrollment	38
3.28	Public Pre-school Program	38
3.29	Re-employment of an STRS Retired Teacher	39
3.30	Preparation of IEP Reports by Special Needs Teachers	40

ARTICLE IV - LEAVES OF ABSENCE

4.01	Personal Leave	41
4.02	Sick Leave.....	42
4.03	Professional Leave	44
4.04	Parental Leave.....	45
4.05	Assault Leave.....	46
4.06	Jury Duty.....	47
4.07	Leave of Absence (Personal Illness, Disability, Educational, and Professional Reasons)	47
4.08	Association Leave	48
4.09	Family and Medical Leave.....	49
4.10	Sick Leave Bank	50
4.11	Leave for Relatives of Military Personnel	50

ARTICLE V - SALARY AND FRINGE BENEFITS

5.01	Salary Schedule.....	52
5.02	Salary Payment	52
5.03	Payroll Deductions.....	52
5.04	Extended Contracts	53
5.05	Supplemental Contracts	54
5.06	Tax Shelter of STRS	55
5.07	Allowance Per Classroom.....	55
5.08	College/Licensure Testing Reimbursement.....	55
5.09	Severance Pay	56
5.10	Insurance Benefits	
	A. Medical Insurance	57
	B. Dental Insurance	58
	C. Life Insurance	58
	D. Liability Insurance	58
	E. Vision Insurance	58
	F. Rx Drugs	59
	G. Wellness Benefit.....	59
	H. Flexible Spending Account	59

ARTICLE V - SALARY AND FRINGE BENEFITS (Continued)

5.11	Section 125 Account	59
5.12	Business Mileage	60
5.13	Notification of Eligibility for Continuing Contract	60
5.14	Notification of Eligibility for Raise in Salary Level.....	60
5.15	Reimbursement for BCI FBI Checks	60

ARTICLE VI - OTHER PROVISIONS

6.01	Provisions Contrary to Law	61
6.02	No Strike	61
6.03	Complete Agreement	61
6.04	Amendment Procedure.....	62
6.05	No Reprisals.....	62
6.06	Fair Share Fee	62
6.07	Duration of Agreement	63
APPENDIX A	Salary Schedule Index effective July 1, 2019	64
APPENDIX A-1	Salary Schedule Index effective July 1, 2020	65
APPENDIX B-1	Salary Schedule July 1, 2019	66
APPENDIX B-2	Salary Schedule July 1, 2020	67
APPENDIX B-3	Salary Schedule July 1, 2021	68
APPENDIX C	Supplemental Salary Schedule	69
APPENDIX D	Grievance Forms	72
APPENDIX E	Personal Leave Form.....	75
APPENDIX E-1	Leave for Relatives of Military Personnel	76
APPENDIX F	Wellness Benefit – Effective 2013-14 & 2014-15	77
APPENDIX F-1	Wellness Benefit – Effective 2015-16.....	80
APPENDIX G-1	Observation of Professional Growth of School Counselors.....	83
APPENDIX G-2	School Counselor Observation Instrument (SCOI).....	84
APPENDIX G-3	School Counselor Evaluation Instrument.....	86
INDEX		93

ARTICLE I - NEGOTIATIONS AGREEMENT

1.01 Preamble

The Western Reserve Board of Education and the Western Reserve Education Association do hereby agree that the operation of the educational system will be promoted by both parties. Attainment of objectives of the educational program of the district requires mutual understanding and cooperation between the Board of Education and the professional teaching staff.

1.02 Recognition

A. Definitions

1. Board -- The locally elected body charged with the responsibility of establishing policies for the school district. The Board is guided in this matter by the statutes of the state of Ohio.
2. Superintendent -- The executive officer of the school district.
3. Teacher (member of the teaching staff) -- All full-time and part-time certified personnel employed by the Board under a regular teaching contract. This term shall include all classroom teachers, special teachers, Intervention Specialists. Excluded from this definition shall be all substitutes, the technology coordinator, and all management-level/supervisory employees as defined in ORC Chapter 4117.
4. WREA -- The Western Reserve Education Association, affiliated with the North Central Ohio Education Association, Ohio Education Association, and National Education Association.

B. The Western Reserve Board of Education, hereinafter referred to as the Board, recognizes the Western Reserve Education Association, hereinafter referred to as the WREA, as the sole and exclusive representative of the professional teaching staff as defined in A-3 above. The Board agrees not to negotiate with any individual, group, or group of teachers other than the WREA concerning wages, hours, terms, and conditions of employment.

C. Both parties agree that all members of the bargaining unit have the right to join, participate in, and assist the employee organization, and the right to refrain from such without intimidation or coercion. Membership in any organization shall not be a condition of employment or continued employment for any employee, nor shall any such membership or payment be involuntarily imposed upon any employee by any term of this agreement.

D. The WREA and the Board mutually pledge that their representatives shall have the necessary power and authority to make proposals, consider proposals, make counterproposals, consider counterproposals, and to reach tentative agreement in the course of the negotiations in view of the fact that no final agreement shall be

executed without ratification by the WREA and adoption by the Board.

- E. Recognition shall also entitle the WREA to the following rights. The Association rights as representative of the bargaining unit members include the following:
1. To facilitate communication with the bargaining unit members, the Association shall have the opportunity to use one specifically designated bulletin board or posting area in the teachers' lounge per school building, except that no partisan political material shall be placed on such bulletin board.
 2. To facilitate communication with the bargaining unit members, the Association shall have the opportunity to use the internal school and/or district mail/courier system.
 3. The Association shall have the same rights to notice of and attendance at Board meetings as granted other organizations by the Board policy adopted to implement the provisions of the Public Meeting Law. One (1) copy of the agenda shall be made available to the president of the Association prior to regular Board meetings.
 4. The WREA shall have the right to use school buildings and facilities in order to conduct Association business so long as regulations pertaining to the use of said buildings and facilities are observed.
 5. Three (3) minutes of time will be allotted at each principal's meeting and ten (10) minutes at each August superintendent's meeting for representatives of the Association to make announcements.
- F. Management Rights - The Board reserves unto itself all rights provided by law which are not restricted by the specific written terms of this contract.

1.03 Negotiation Teams

- A. The Western Reserve Board of Education team shall meet with WREA representatives.
- B. No action to coerce, censor, or **penalize** any negotiation participant shall be made or implied by any other member.

1.04 Negotiation Procedure

A. Meetings

1. All requests for negotiations meetings shall be made in writing. Requests initiated by the Board shall be directed to the WREA president. Requests initiated by the WREA shall be directed to the superintendent.
2. Written requests for negotiations meetings shall include the following:

- a. Date of writing
 - b. Statement of purpose for meeting
 - c. Name, address and phone number of the person to contact representing the requesting party to arrange a mutually satisfactory time for the initial negotiations meeting.
- B. Representation. Designated representatives of the Board and the Association shall meet to negotiate in good faith in accordance with the procedures set forth within this agreement. The Board's negotiating team and the Association's negotiating team shall be limited to not more than six (6) members of each team. Neither party shall have control over the selection of the other party's team members.
- C. Authority of Negotiators. While no final agreement can be executed by the negotiators, the parties mutually pledge that their representatives will be clothed with all necessary power and authority to make proposals, consider proposals, make counterproposals, consider counterproposals, and to reach tentative agreement in the course of negotiations.
- D. Exchange of Information. Prior to and during the period of bargaining, each party will provide the other, upon written request, within a reasonable time, all regularly and routinely prepared information concerning issues under consideration.
- E. Consultants. The parties may call upon consultants, but the attendance of such consultants at the negotiation table shall not cause the maximum number of team members to exceed six (6). Costs of such consulting service shall be borne by the party requesting it.
- F. Request for Meeting/First Meeting. Between one hundred twenty (120) and ninety (90) calendar days prior to the expiration of this master agreement in any calendar year in which negotiations are scheduled to occur, either party may notify the other of a desire to commence bargaining. A meeting shall be held within fifteen (15) working days of such request, unless both parties mutually agree to a later day.
- G. Submission of Issues. At the first negotiations meeting both parties shall submit to each other their proposals for negotiations in such written detail so that the proposals, if agreed to by the other party, would express the complete agreement between the parties with respect thereto. Thereafter, neither party shall submit additional items for negotiation except with the consent of the other party.
- H. Meetings. The parties shall meet at places and times agreed upon at the beginning of the prior meeting. Length of meetings as well as times and places of the meetings shall be agreed upon at the onset of the beginning of each session.

- I. Caucus. Upon request of either party, the negotiation meeting shall be recessed to permit the requesting party a period of time within which to caucus in privacy.
- J. Session Time Limits. These time limits are guidelines only and may be modified by mutual agreement.
 - 1. Either party may call caucuses during negotiations for a period of up to thirty (30) minutes.
 - 2. Bargaining sessions shall last a maximum of three (3) hours.
- K. Item Agreements. As negotiated items ("articles") are agreed upon, they shall be reduced to writing and initialed by the chief negotiator of each party. Such initialing shall be construed as tentative agreement by both parties on that item or issue ("articles"), subject to finalization by ratification by the membership of the Association and adoption by the Board.
- L. Intent to Recommend. Prior to the negotiated agreement being presented to the Association and to the Board, each member of both negotiating teams shall pledge to recommend adoption of the tentative agreement.
- M. Agreement. When an agreement is reached through negotiations, the outcome shall be reduced to writing. Both parties shall review the agreement together to determine the accuracy of the transcript. If the agreement is then in proper form, it shall be submitted to the Association for ratification. After ratification, and under the provisions of Ohio Revised Code 4117.10(B), the tentative agreement will be submitted to the Board of Education for final approval. The Board shall accept or reject the tentative agreement as a whole as required in O.R.C. 4117.10(B). In the event the Board fails to act within thirty (30) days on the tentative agreement under the provisions of O.R.C. 4117.10(B), the agreement shall be deemed approved.
- N. Resolving Differences (Impasse Procedures):

If agreement is not reached after negotiations have taken place for sixty (60) days (unless a later date is mutually agreed to), or if the parties mutually declare impasse prior to sixty (60) days of negotiations, the parties shall jointly request the appointment of a mediator from the staff of the Federal Mediation and Conciliation Service. The mediator shall meet with the representatives of the parties either jointly or separately, and shall take such steps as he/she deems appropriate to persuade the parties to resolve their differences and to effect a mutually acceptable agreement. The mediator shall have no authority to recommend or bind either party to an agreement.

The period of mediation shall last for a maximum of thirty (30) days or until the expiration of the contract, whichever is later, unless an extension of time is agreed to by both parties. The cost for the mediator, if any, shall be borne equally by both parties.

Should the parties be unable to reach agreement as the result of this mediation

process, the impasse provisions of this Collective Bargaining Agreement shall be deemed exhausted. The parties further agree that the mediation process as outlined above shall constitute a mutually agreed upon dispute settlement procedure that supersedes the statutory procedures set forth in ORC 4117.14.

1.05 Inclusion

The Western Reserve Board of Education and the Western Reserve Education Association agree that all sections of the existing Collective Bargaining Agreement which are not re-negotiated shall be included in the new Collective Bargaining Agreement.

1.06 Proofreading Final Agreement

- A. Representatives of the Association and Board will have the opportunity to proofread the first draft of the agreement. Any errors, typographical errors, omissions, or other such "differences" between the first draft of the agreement and the text which the parties tentatively approved during negotiation shall be communicated in writing to the superintendent and Association president for appropriate rectification within thirty (30) days after delivery of the first draft of the Master Agreement. Any errors found after thirty (30) days by either the WREA or Board shall be communicated in writing to the respective parties and corrected at the earliest possible date.
- B. This proofreading provision is purely for the purpose of affording an opportunity for technical correction, not for renegotiation. Such proofreading shall not alter the content of the final document to reflect anything not subject to prior tentative agreement.

1.07 Distribution of Agreement

- A. A copy of this agreement will be made available. The Association shall assume responsibility for having the Agreement typed. The Board shall assume the responsibility of duplication and bear any costs therein.
- B. The Board and Association shall have the opportunity to proofread and approve the Agreement before and after printing.
- C. Employees hired during the period of this master working agreement will be furnished a copy of this Agreement by the Western Reserve Education Association.

1.08 In-Term Bargaining on No Child Left Behind Requirements ("NCLB")

No action shall be taken without the agreement of the WREA in regard to any issue relating to the Board's compliance with the Elementary and Secondary Education Act of 1965, as amended, 20 U.S.C. 6031 et. seq. (2002), where said action would adversely impact any bargaining unit member or otherwise affect the wages, hours or terms and conditions of employment of any bargaining unit member.

The Board and the WREA agree that in-term bargaining under this Section shall only be

undertaken in the utmost good faith and where the ESEA compliance issue cannot be addressed through methods which do not adversely impact the Collective Bargaining Agreement.

ARTICLE II - GRIEVANCE PROCEDURE

2.01 Definitions

- A. A grievance is a complaint involving the alleged violation, misrepresentation or misapplication of the negotiated agreement between the Association and the Board of Education.
- B. A grievant is an employee, or group of employees, or the Association, alleging a violation, misrepresentation or misapplication of the negotiated agreement. A grievance alleged by a group shall have arisen out of identical circumstances affecting each member of said group.
- C. A day shall be defined as a school calendar day for which teachers are compensated.

2.02 Initiating and Processing

A. Level One

- 1. A grievant, within twenty (20) days of an occurrence or awareness of an occurrence giving rise to a grievance will first discuss it with his/her principal or immediate superior of his/her building with the object of resolving the matter informally.
- 2. If the grievant or Association is not satisfied with the disposition of the grievance, a written grievance may be filed with the principal within ten (10) days following the initial hearing with the principal utilizing the form attached hereto as Appendix D. The principal shall communicate a decision in writing to the grievance within ten (10) days of receipt of the written grievance. A copy of the decision shall be provided to the Association president.

B. Level Two

- 1. Within five (5) days of receipt by the grievant of the principal's decision, such decision may be appealed to the superintendent. The appeal shall include a copy of the principal's decision.
- 2. The appeal shall be heard by the superintendent within ten (10) days of its receipt. Five (5) days prior to the hearing, written notice of the time and place for the hearing shall be given to the grievant and to the Association president.
- 3. Within ten (10) days after hearing the appeal, the superintendent shall communicate to the grievant his written decision, including supportive reasons. A copy of the decision shall be provided to the Association president.

C. Level Three

1. Within five (5) days of receipt by the grievant of the superintendent's decision, such decision may be appealed to the Board of Education. The appeal shall be sent to the treasurer of the Board and shall include copies of the decisions rendered by the principal and the superintendent.
2. The appeal shall be heard by the Board in executive session at the next regularly scheduled Board meeting in accordance with ORC 121.22. Prior to the hearing, written notice of the time and place shall be given to the grievant and to the Association president.
3. Within twenty (20) days after the hearing, the Board shall communicate the decision, including supportive reasons, to the grievant and to the Association president.

2.03 Grievance Impasse

If the aggrieved, with concurrence of the bargaining agent, is not satisfied with the disposition of the grievance at Level Three, he/she may within thirty (30) days submit the grievance to arbitration by the American Arbitration Association whose rules and regulations shall likewise govern the proceedings. The arbitrator may not add to, alter, or delete from the terms of the negotiated items. The arbitrator shall have all power and remedies within lawful statutes to render an award which shall be final and binding on all parties. The cost for the services of the arbitrator will be shared equally by the Board of Education and the WREA.

2.04 General Procedures

- A. Failure at any step of this procedure to communicate a timely written decision on a grievance shall permit the grievant to proceed to the next step. Failure at any step of this procedure to appeal a grievance to the next step within the specified time limits shall be deemed to be an acceptance of the decision rendered at that step.
- B. An individual employee is at liberty to present, process, and settle a grievance without intervention of the Association or without representation provided such settlement is consistent with the terms of the Agreement; or the employee may be represented by the Association at each step of this procedure. In any event, the Association must receive notice of all grievance hearings and may be represented at all such hearings.
- C. At any step of this procedure, time limits may be extended by mutual written agreement of the parties.
- D. The fact that an employee files a grievance shall not be recorded in his/her personnel file.

- E. If a grievance arises from a claimed violation or misapplication of a provision(s) of the Agreement that affects a group of teachers in more than one (1) school, the written grievance may be initiated at Level Two of this grievance procedure.

ARTICLE III - EMPLOYMENT PRACTICES

3.01 Principal/Grade Division Ratio

The Board of Education will comply with the minimum state standards as prescribed by the Ohio Administrative Code.

3.02 Secretary/Building Ratio

A minimum of one (1) full-time secretary will be employed for each general division of the school district. A general division shall be defined as a group of teachers assigned to a principal and/or an identified building (e.g., each elementary building, middle school/junior high, and high school). The number of secretaries employed will be based on the higher number of divisions (number of principals or number of buildings).

3.03 Lunch Duties

A. Elementary

Elementary teachers shall be relieved of cafeteria and all playground duties. If substitutes cannot be found for persons normally performing cafeteria and noon playground duties, teachers will be assigned to these duties. No teacher shall be required to collect and/or keep records of student lunch money.

B. Middle/High Schools

In the event certified staff are asked to perform lunch duties, a minimum of two (2) employees shall be assigned to the high school/middle school cafeterias. If fewer than fifty (50) students are scheduled in to a lunch period, then a minimum of one (1) employee shall be assigned.

3.04 Bus Duty

Teachers who volunteer to work bus duty shall be compensated at the rate of three dollars (\$3.00) per day. No teacher shall be compelled to work bus duty.

3.05 Classroom Size/Maximum Number of Pupils

- A. The maximum number of pupils in any self-contained classroom will be thirty (30) pupils. The maximum number of students in a self-contained primary classroom (K-3) shall be twenty-five (25). The Board will give special consideration for classroom assistance when the maximum number of students is exceeded. Examples of special assistance can include: assignments/re-assignment of support teachers, re-assignment of students, assigning aides, splitting classes, and hiring additional teachers and/or substitute teachers. If enrollment exceeds the maximum during the school year, students shall be distributed equitably among classrooms. The Western Reserve Board of Education will meet state standards in regards to class size.
- B. Split classes shall be implemented in the Western Reserve Schools only as a last

resort measure and only if there is a teacher(s) who volunteers to teach such class. In the event of split classes, the following guidelines will be followed:

1. The number of students in the split class will be capped at twenty (20).
2. Selection of students in the split class will be a joint decision between the teacher(s) and the administrator.
3. Academic records, work habits and disciplinary records will be considered in the selection of students.
4. Assistance to the classroom teacher will be provided by both county and local administrators.

3.06 Planning Time/Daily Minimum/Emergency Substitution/Scheduling of Classes Between Buildings

- A. Each teacher shall have planning time during the day equal to at least forty (40) minutes in addition to a thirty (30) minute lunch. At the elementary building, forty-five (45) minutes beyond the student day shall be scheduled as follows: thirty (30) minutes before and fifteen (15) minutes after the student day. Changes to this schedule can be made with the mutual agreement of the principal and teacher. This time shall be used at each teacher's discretion for planning and preparation of lessons; conferences with the principal, county supervisors, and teaching specialists; tutoring students and conferences with students; and other teaching related work.
- B. The high school and middle school student day shall not exceed six (6) hours and fifty (50) minutes. The elementary student day shall not exceed six (6) hours and twenty-five (25) minutes.
- C. A bargaining unit member shall not be required to substitute and/or teach during his/her conference period(s) or planning time, but may volunteer to do so. Bargaining unit members that substitute and/or teach during his/her conference period(s) or planning time at the request of the building principal shall be paid twenty-five dollars (\$25) per period. A bargaining unit member shall not be required to supervise for other absent teachers. Teachers who volunteer to substitute/supervise students in addition to those regularly assigned shall receive no additional compensation; however, teachers may not be coerced or required to substitute/supervise additional students.
- D. For those teachers who, as part of their regular assigned duties, are required to travel between buildings to teach their respective classes, every effort will be made by the administration to schedule the classes in each building consecutively. In addition, every effort will be made by the administration to schedule these classes at the beginning of the school day.

3.07 Educational Service Personnel

The Board of Education will meet educational service personnel requirements and state minimum standards.

3.08 Teacher Workday

- A. The teacher workday shall be seven (7) hours and fifteen (15) minutes in length inclusive of lunch and conference period. The start of the teacher day will be 8:30 a.m. at the elementary buildings and 7:20 a.m. at the middle school and high school.
- B. Teachers may be required to attend one (1) monthly building meeting for a maximum of sixty (60) minutes beyond the student day.
- C. It is the expectation that affected teachers will attend Open House and/or evening programs appropriate to grade level/course of study unless notice is given five (5) calendar days in advance whenever possible. If five (5) days notice is not possible, notice must be given as soon as the teacher has knowledge that he/she will be unable to attend. It is the expectation that reasons for not attending such meetings will be legitimate and reasonable.
- D. Building Advisory Committee (BAC) meetings for elementary buildings shall be voluntary.

To provide for teacher input into the building level decision-making process, each building will have a Building Advisory Committee which meets with the principal on a regular basis. The purpose of the Committee will be to provide the principal with staff input prior to the finalizing of decisions which could have significant impact upon overall building operations, to provide a forum to discuss bargaining unit members' concerns in the building and to develop constructive resolutions to problems. The members of the Committee will meet on mutually agreed dates and times.

3.09 Contract Year

- A. The teachers' school year shall consist of a maximum of one hundred eighty-four (184) days therein on which teacher attendance is required. As is tradition, the first day of the one hundred eighty-four (184) day work year will be set for new teacher orientation or other required county meetings. The first and last days of the school year shall be designated as teacher work days unless mutually agreed upon otherwise.
- B. All scheduled days shall be during the regular work week of Monday through Friday, exclusive of scheduled school holidays.
- C. The Association shall be furnished a proposed school calendar at least four (4) weeks in advance of adoption of the calendar by the Board. At least two (2) weeks in advance of adoption of the calendar, representatives of the Association shall meet for the calendar. The proposed and adopted school calendar shall include the

sequence of days to be designated as “make-up days”, if such days are required by law. In the development of the school calendar, the administration shall give consideration to the concept of work weeks consisting of three (3) student days or more. The adoption of a school calendar shall rest solely with the Board of Education.

- D. After five (5) calamity days and up to the limit that students are excused from attendance, staff will report and work their normal 2-hour delay schedule with flexible reporting time after the buildings and grounds have been cleared.

Any number of calamity days over five (5) shall result in a discussion between the Board and the Association. This provision (D) will expire on June 30, 2022.

3.10 Reduction In Force

If the Board determines it necessary to reduce the number of bargaining unit positions under O.R.C. 3319.17 or for financial reasons, the following procedures shall apply:

- A. Prior to proceeding with an anticipated staff reduction, the Association president shall be notified by the superintendent of the Board's intent to consider a staff reduction not less than four (4) months prior to the date the superintendent is recommending a reduction to the Board of Education for action. A meeting shall be held between the president of the Association and the superintendent to review appropriate data indicating a need for a reduction in staff. The parties shall discuss why the reduction is deemed necessary, what teaching fields are to be affected, the extent of the anticipated reduction, and the possible effects of said reduction.

Within ten (10) days of the meeting, the superintendent shall provide the Association with a RIF list of potentially affected positions/employees which shall be based on certificate/license, OTES final summative rating, and seniority.

- B. Reductions shall be made by suspending contracts based upon the superintendent's recommendation. Those contracts to be suspended will be chosen as follows:
1. Position(s) vacated as a result of voluntary resignation, retirement, or death will not be filled.
 2. All members of the bargaining unit will be placed on a seniority list for each teaching field for which they are properly certificated. Teachers serving under continuing contracts will be placed at the top of the list, in descending order of seniority.
 3. Seniority will be defined as the length of continuous service as a certificated employee under regular contract in this district.
 - a. Board approved leaves of absence will not interrupt seniority, but time spent on such a leave shall not count toward seniority.
 - b. If two (2) or more teachers have the same length of continuous

service, seniority will be determined by:

- the date of the Board meeting at which the teacher was hired, and then by
- the date the teacher signed his/her initial employment contract in the district, and then;
- any remaining ties will be broken by lot.

4. Recommended reductions in a teaching field will be made by selecting the lowest person on the seniority list for that area of certification who is currently assigned to a position in that teaching field. A teacher so affected may elect to displace a teacher who holds a lower position on a seniority list for another area of certification. Any such election must be made at the time the teacher is notified he/she will be affected.
5. An employee whose contract is to be suspended due to a RIF shall be given thirty (30) days' advance written notification prior to the implementation of the RIF. The Association shall be sent a copy of said notification at the same time. The notice shall state the reason for RIF, the effective date of contract suspension, and the date of the Employer's action to implement the RIF.

C. The names of teachers whose contracts are suspended in a reduction in force will be placed on a recall list for up to eighteen (18) months from the date of the contract suspension. Teachers on the recall list will have the following rights:

1. No new teachers will be employed by the Board while there are teachers on the recall list who are certificated for the vacancy.
2. Teachers on the recall list will be recalled in order of seniority for vacancies in areas for which they are certificated.
3. If a vacancy occurs, the Board will send a certified announcement to the last known address of all teachers on the recall list who are qualified according to these provisions. It is the teacher's responsibility to keep the Board informed of his current address. All teachers are required to respond in writing to the district office within seven (7) calendar days. The most senior of those responding will be given the vacant position. Any teacher who fails to respond within seven (7) calendar days, or who declines to accept the position, will forfeit all recall rights.
4. A teacher on the recall list will, upon acceptance of the notification to resume active employment status, return to active employment status with the same seniority, accumulation of sick leave, and salary schedule placement as he enjoyed at the time of layoff.
5. Every possible effort will be made to recall all properly certificated employees as positions become available within eighteen (18) months.

6. Recognition of additional certification, license, or entry-level requirements earned or reported while on layoff status for recall purposes, provided such information is filed with the Employer prior to recall.
 7. The right to priority status on the substitute list, upon request. Names from such requests will then be communicated to the Board staffing service.
- D. The parties agree that these procedures apply only to the suspension of contracts under 3319.17 or for financial reasons. This Article shall not require the Board of Education to fill any vacancy, nor shall it interfere with any other lawful personnel procedures in the district.

3.11 Transfers, Assignments and Vacancies

- A. Teachers shall be notified in writing of any change in their programs and schedules for the ensuing school year, including the schools to which they will be assigned, the grades and/or subjects that they will teach, and any special or unusual classes or assignments that they will have, as soon as practicable and under normal circumstances not later than May 1, provided that in the event of a change in circumstances or conditions during the months of May through August (e.g., registration) such assignments may be changed as required to meet the situation.
- B. In order to assure that pupils are taught by teachers working within their areas of competence, teachers shall not be assigned, except in accordance with the regulations of the State Board of Education and for good cause, to subjects and/or grades or other classes outside the scope of their teaching certificates and/or their major or minor fields of study.
- C. Teachers who desire a change in grade and/or subject assignments or who desire to transfer to another building shall file a written statement of such desire with the superintendent not later than March 1. Such statement shall include the grade and/or subject to which the teacher desires to be assigned or the school or schools (in order of preference, if the teacher has preferences) to which he/she desires to be transferred. As soon as practicable and under normal circumstances not later than one (1) week prior to the close of the school year, the office of the superintendent shall make available to each teacher who has filed such a statement, upon request, system wide data showing the names of persons who have been reassigned or transferred and the nature of such reassignment or transfer.
- D. In the determination of assignments and transfers, every effort will be made to avoid teachers being transferred two (2) years in a row and over a span that exceeds four (4) grade levels. The convenience and wishes of the individual teacher will be honored to the extent that these considerations do not conflict with the instructional requirements and best interests of the school system and the pupils. An involuntary assignment or transfer shall be made only after a meeting between the teacher involved and the superintendent or his/her designee, at which time the teacher shall be notified of the reasons for the assignment or the transfer. In the event that a teacher objects to the assignment or transfer at this meeting, the Western Reserve Education Association will, upon request of such teacher, send a representative to

meet with the superintendent or his/her designee to discuss the assignment or transfer.

- E. In arranging schedules for teachers who are assigned to more than one (1) school, an effort will be made to limit the amount of interschool travel. Such teachers shall be notified of any change in their schedules as soon as practicable.
- F. Teacher assignments and transfer shall be made without regard to age, race, creed, color, religion, nationality, sex, or marital status.
- G. The superintendent shall notify all staff of any teaching openings that occur so that employees shall be first considered for said position(s) prior to hiring new personnel. Posting notices must be made to members of the bargaining unit prior to vacancies being advertised elsewhere.

Prior to the end of each school year, teachers shall verify that the treasurer's office has a complete list of all certification areas held by the teacher.

Posting notices shall include job qualifications and the deadline for filing which shall be at least ten (10) calendar days from the date of posting, except between July 15 and the first day of the new school year.

- H. When a vacancy has been posted and when a current bargaining unit employee applies for the vacancy, the employee shall be granted an interview for the position in question provided he/she is certified for the opening. He/she will be notified in writing within reasonable time if the request to fill the vacant position has been approved or denied.

I. Vacancy

1. Definition

A vacancy shall be defined as any position in the bargaining unit which the board determines to fill resulting from an employee's leaving employment as a result of a termination, resignation, or death; non-renewal for just cause; transfer or assignment to another bargaining unit position; assuming a non-bargaining unit position; and/or the creation of a new bargaining unit position.

This provision shall not apply to position(s) where the teacher(s) is on a leave of absence. The date the Board takes official action to create such a vacancy shall be considered the official date of the vacancy. In the case of a teacher's death, the first Board meeting thereafter shall be considered the date of the vacancy.

2. Posting of a Vacancy Notice

- a. The vacancy notice shall be posted within ten (10) workdays of the occurrence of the vacancy.

- b. The vacancy notice shall be posted electronically and openly on all employee bulletin boards, and a hard copy sent to the Association president.
- c. The vacancy notice shall include the position title, qualifications, licensing, and/or certification requirements; description of the position's duties; title of immediate supervisor; location where work is to be performed; date of initial posting; and last date to apply for the position.
- d. The posting shall be for ten (10) workdays.
- e. The superintendent shall notify all staff of any administrative openings.

J. Seniority

1. Seniority Defined

Seniority shall mean the length of continuous employment with the Western Reserve Schools in a bargaining unit position as follows:

- a. Seniority shall accrue for all time a staff member is on active pay status or is receiving Workers' Compensation benefits or has their contract suspended while on layoff status, as per Reduction in Staff of this Agreement.
- b. Time spent on inactive pay status (e.g., unpaid leave of absence) shall not contribute to the accrual of seniority but shall not constitute a break in seniority.
- c. No staff member shall accrue more than one (1) year of seniority in any one (1) work year.
- d. A staff member teaching under temporary certification and rehired for a succeeding year shall maintain seniority rights for all years of teaching in the district under the temporary certificate.

2. Equal Seniority

A tie in seniority shall occur when two (2) or more staff members in the same classification or area of certification have the same amount of seniority credit as determined by the seniority list. Ties in seniority shall be broken by the following method to determine the most senior staff member.

- a. The staff member with the first day worked for the Board on the regular school calendar, if determinable; then

- b. The staff member with the earliest date of hire by the Board; then
- c. The staff member whose most recent application was filed earliest, if applications are available; then
- d. By lottery, the staff member whose name is drawn first will have the most seniority, etc. This procedure shall be implemented in the presence of designated WREA representatives.

3. Loss of Seniority

Seniority shall be lost when a staff member retires or resigns, is terminated, is non-renewed, or is otherwise removed from the recall list.

4. Seniority List

A seniority list shall be prepared by the superintendent, treasurer and two (2) representatives appointed by the Association. The list shall be posted annually by December 1 of each year. The Board shall be responsible for posting the list electronically and openly on all employee bulletin boards and a hard copy sent to the Association president at least five (5) days before the date of posting.

- a. In each area of licensure/certification each list will be divided according to licensure/certification. The names of staff members on the seniority list shall appear in seniority rank order divided into each area of licensure/certification and contract status. The name of the most senior staff member shall appear at the top of the listing and the name of the least senior staff member shall appear at the bottom of the listing.
- b. The names of all part-time staff members shall appear on the seniority list but shall be listed separately from the names of full-time staff members.

5. Correction of Inaccuracies

Each staff member shall have a period of thirty (30) days after the posting of the seniority lists in which to advise the Board or its agent(s) and the WREA, in writing, of any inaccuracies which affect the staff member's seniority. The Board or its agent(s) shall investigate all reported inaccuracies and make such adjustments as may be in order and shall post the updated seniority lists immediately. No protest shall be considered after thirty (30) days of the posting of the seniority lists and the lists shall be considered as final under the next posting, for the purpose of protesting inaccuracies.

3.12 Non-renewal of Contracts

- A. Reasons for non-renewal of a teacher's contract shall be clearly stated and given to the teacher by the principal or superintendent in writing as to why said principal or superintendent intends to recommend the teacher's contract not be renewed. Recommendation for non-renewal shall be for cause.
- B. The superintendent or his/her designee shall discuss the reason(s) for a recommendation for non-renewal with the teacher prior to official action of the Board of Education not to renew a limited contract. At the meeting where such discussions are held, the teacher shall have the right to have the Association representative of his/her choice present. The superintendent shall have the right to have a representative of his/her choice present.
- C. If after the conference the superintendent recommends non-renewal, the teacher shall have the right to request a hearing before the Board of Education. The Board of Education shall grant the teacher a hearing in executive session.
- D. The hearing shall be arranged upon the written request of the teacher within five (5) calendar days of such request and shall take place within ten (10) calendar days after the Board of Education receives such request. The teacher involved in such a hearing before the Board of Education shall have the right to have the Association representative and OEA representative at said hearing if he/she so desires. No more than five (5) people may address the Board on the teacher's behalf at the executive session, but the Board may also allow additional witnesses, if needed.
- E. The hearing shall be private.
- F. Within five (5) calendar days after the hearing with the Board of Education, the teacher will be apprised of his/her status.
- G. Failure to observe the provisions of this Agreement shall deem such teacher to be re-employed for the succeeding year.

3.13 Teacher Evaluation System

Western Reserve utilizes the full OTES model for evaluation during the term of this agreement. In the Western Reserve Teacher Evaluation System there are two equally important halves: Teacher Performance on Standards and Student Growth Measurers.

A. Teacher Performance on Standards

To assess Teacher Performance on Standards, Western Reserve principals will use evidence gathered by completing a pre-conference, two formal observations of at least 30 minutes, walkthroughs, and post conference. The eTPES system and forms will be used to provide the teacher with a rating of Accomplished, Skilled, Developing, or Ineffective.

1. Pre-Conference and Post-Conference:

Face to face pre-conferences will be held with individual teachers within three work days of the first formal observation. These pre-conferences will allow the evaluator and the teacher to discuss what the evaluator will observe during the classroom visitation. Important information will be shared about the characteristics of the learners and the learning environment which may be evidenced by a portfolio created by the teacher supporting rubric criteria. Specific information is also shared about the objectives of the lesson and the assessment of student learning. The conference will provide the teacher an opportunity to identify areas in which he/she would like focused feedback from the evaluator.

After each formal observation, a face to face post-conference will be held with the teacher within five school days. While the OTES observation is used to evaluate a teacher's instruction, it is also used to provide a basis for support that teachers receive for professional growth. The purpose of the post-conference is to provide teachers opportunities to self-reflect on their lessons with the guidance and support of their evaluator.

2. Walkthroughs:

A walkthrough is defined by a visit of less than twenty minutes. At least two walkthroughs utilizing the eTPES forms will be conducted by the evaluator of each classroom teacher and are intended to establish a supportive connection between the evaluator and the teacher and monitor the teacher's progress on targeted areas of instruction. These visits also are a tool to inform evaluation that provides the opportunity to gather evidence of instruction over a series of short classroom visits. Teachers will be provided written feedback on evaluator walkthroughs within twenty-four (24) hours and will have the opportunity to write a response if they choose to do so within twenty-four (24) hours on the eTPES form.

3. Formal Observations:

Observations of teaching provide important evidence when assessing a teacher's performance and effectiveness. As an evaluator observes a teacher engaging students in learning, valuable evidence may be collected on multiple levels. As part of the formal observation process, ongoing communication and collaboration between evaluator and teacher help foster a productive professional relationship that is supportive and leads to a teacher's

professional growth and development. Teachers will participate in a minimum of two formal observations. A formal observation consists of a visitation of a class period or the viewing of a complete class lesson. The observation should be conducted for an entire class period, lesson, or a minimum of 30 minutes. During the classroom observation the evaluator documents specific information related to teaching and learning. Each formal evaluation will be analyzed by the evaluator using the Teacher Performance Evaluation Rubric. A narrative will then be completed by the evaluator to document each formal observation and will be reviewed during the post conference. Teachers will have the opportunity to write a response if they choose to do so within five days on the eTPES form.

4. A Holistic Teacher Rating:

After completing formal observations, walkthroughs, and pre and post conferences with the teacher, the evaluator will use the evidence collected to rate the teacher's performance on standards using the eTPES forms.

B. Student Growth Measures

1. Value-Added:

In Ohio, Value-Added refers to the EVAAS Value-Added methodology, provided by SAS, Inc. This is distinct from the more generic use of the term "value-added," which can represent a variety of statistical modeling techniques.

2. ODE-Approved Vendor Assessment:

HB 153 requires ODE to develop a list of student assessments that measure mastery of the course content for the appropriate grade level, which may include nationally normed standardized assessments, industry certification examinations, or end-of-course examinations for grade levels and subjects for which the Value-Added measure does not apply (the non-tested grades and subjects). The list of approved assessments will be maintained and updated by ODE.

3. Student Learning Objectives (SLOs):

SLOs are goals identified by a teacher or group of teachers that identify expected learning outcomes or growth targets for a group of students over a period of time. SLOs are determined by teachers after analyzing data on student academic performance and identifying areas that need a targeted effort for all students and subgroups of students. As a way to measure student growth, the objectives demonstrate a teacher's impact on student learning within a given interval of instruction. Further, they enable teachers to use their own knowledge of appropriate student progress to make meaningful decisions about how their students' learning is measured. As a collaborative process, SLOs also support teacher teams in their use of best practices.

4. Shared Attribution Measures:

Shared attribution measures are student growth measures that can be attributed to a group. This could include a district, building, department or grade-level team. These measures encourage collaborative goals and may be used as data in the student growth component.

C. Western Reserve Student Growth Calculation:

1. "A" teacher--value added data:
A1-- As defined by the OTES Model
A2-- 50% proportional to teacher's course load.
2. "B" teacher--vendor assessments:
10% - 40% vendor assessments, and 0% - 50% SLO.
3. "C" teacher--no vendor/no value added: 50% SLO.
4. Teachers who teach less than 50% of the day will be considered a category C teacher for evaluation purposes.
5. In the event that student numbers fall below six (6) on both SLO's, all teacher evaluation percentages will fall on teacher performance on standards.

6.

<u>Educator Category</u>	<u>Value Added %</u>	<u>Vendor Assessment</u>	<u>LEA Measures % SLOs</u>	<u>LEA Measures % Shared Attribution</u>	<u>Total 50%</u>
<u>A1: Value Added</u>	<u>50%</u>				<u>50%</u>
<u>A2: Value Added</u>	<u>Portion of 50%</u>	<u>Portion of 50%</u>	<u>Remainder of 50%</u>		<u>50%</u>
<u>B: ODE-approved Vendor Assessments</u>		<u>10% - 40%</u>	<u>0% - 50%</u>		<u>50%</u>
<u>C: LEA Measures</u>			<u>50%</u>		<u>50%</u>

D. Rating System

1. Student Growth Rating:

Each teacher's total student growth will be calculated to be provided in a category of Above Expected Growth, At Expected Growth, or Below Expected Growth.

2. Final Rating:

To obtain the final rating, each category's sub-scores are combined on the

Evaluation Matrix. The vertical axis of the Evaluation Matrix represents student growth measures and the horizontal axis on the table represents teacher performance. After final ratings for teachers have been determined, Western Reserve will use the Ohio eTPES (electronic Teacher and Principal Evaluation System) to report their teacher and principal final summative ratings to the state. Western Reserve must report the number of teachers and principals for whom an evaluation was conducted and the number of teachers and principals assigned each rating to the ODE. eTPES will calculate the 50% Student Growth Measures from manually entered data and downloaded data (Value-Added). It will then calculate the Final Summative Rating (using the Teacher Performance 50% and the Student Growth Measures 50%) for each educator.

E. Evaluation Cycle

1. A board of education may elect to evaluate a teacher receiving a rating of accomplished every three years as long as the teacher's student academic growth measure for the most recent school year for which data is available is average or higher.
2. A board of education may elect to evaluate a teacher receiving a rating of skilled every two years as long as the teacher's student academic growth measure for the most recent school year for which data is available is average or higher.
3. In any year in which a teacher who has not been formally evaluated as a result of having previously received a rating of accomplished or skilled, a credentialed evaluator shall conduct at least one observation of the teacher and hold at least one conference with the teacher. This also applies to teachers who received an accomplished rating in 2013-2014.
4. TEACHERS ON LEAVE OR RETIRING: A board of education may elect not to conduct an evaluation of a teacher who: (1) was on leave for 50 percent or more of the school year; or (2) has submitted notice of retirement on or before Dec. 1 of the school year. C

F. Evaluations Specifics

1. Western Reserve Teacher Evaluations will follow the Ohio Teacher Evaluation System (OTES).
2. All evaluation procedures will be conducted by district principals. eTPES forms will be utilized for evaluations.
3. School Counselors will be evaluated using the current form approved by WREA and WRBOE (Appendixed) and will follow the OTES timeline.
4. This Article shall supersede the procedures for evaluations set forth in ORC 3319.111

5. The OTES Teacher Evaluation Committee will reconvene as necessary to address legislative changes that supersede this agreement or for other reasons found necessary by committee members.

3.14 Smoke and Drug-Free Environment

Members of the bargaining unit represented by the Western Reserve Education Association shall be guaranteed a smoke-free environment. This shall mean that no member of the bargaining unit will be permitted to smoke in any school building during his/her workday.

“The Board and the Association are committed to the national goal of a drug-free workplace.”

3.15 Policies and Procedures

Whereas the Board Policy Book is now available to all district personnel on-line, the district will no longer provide hard copies of the book to the WREA president and/or staff. The website will be posted in each building.

3.16 Sequence of Contracts

The sequence of contracts for individual teachers shall be as follows:

- 1 to 5 years in the district – one-year contracts
- After five (5) or more years in the district -- two-year contracts

3.17 Workload

The administration will continue to make an effort to work toward equity in terms of the number of preps, number of classes taught, and the number of duties.

There shall be an after-school detention room at the high school/middle school. After school detention duty will be compensated in accordance with the supplemental salary schedule.

3.18 Personnel Files

- A. A personnel file for each employee shall be maintained by the Board. This shall be the only official file.
- B. An employee and/or his/her representative, with written permission, shall be permitted to inspect all information in the personnel file. The review of any file shall, at the discretion of the superintendent, be in the presence of the superintendent or his/her designee. Upon reasonable request, the employee shall be furnished copies of information contained in the file.
- C. If an employee disputes the accuracy, relevance, timeliness, or completeness of information maintained by the Board, he/she may request that the superintendent

investigate the current status of the information and within reasonable time the superintendent will conduct an investigation to determine if the disputed information complies with the provisions of law.

- D. Any material to be placed in the employee's file shall be shown to the employee and a copy shall be provided. The employee shall be afforded the opportunity to sign such material to indicate that he/she has seen the material, but such signature shall not be construed to indicate agreement with the contents of the material. The employee may write a rebuttal to any material which is to be placed in his/her file and such rebuttal shall be permanently attached to the material in question.
- E. Anonymous letters or information shall not be placed in an employee's file nor shall any record be made of same.
- F. Custodians of the personnel records are obliged to follow the Ohio law as it pertains to the release of public records.
- G. An employee shall be notified as soon as possible of any request(s) made pursuant to Ohio law to view the contents of the employee's personnel file. An individual requesting to see an employee's file shall not be granted access to the file for a reasonable period of time. During this period of time the employee may review his/her file and exercise any and all rights as outlined above.

3.19 Health and Safety Concerns

- A. Hepatitis B shots shall be offered at Board expense to bargaining unit members in the following at-risk positions: vocational agriculture, industrial arts, life sciences, physical education, science, and coaching. In addition, at least four (4) other bargaining unit members will be offered the shots per school year. Interested bargaining unit members should notify the superintendent. Hepatitis B shots shall be offered through the county health department.
- B. Every classroom shall be equipped with disposable gloves.
- C. When training for administering medication to students is provided to the aides in the district, such training shall be offered to all certificated staff as well, on a voluntary basis.

3.20 Long Distance Learning

- A. The purpose of the Huron County Fiber Optics Long Distance Learning Program (LDL) is to supplement and enhance the curriculum and to provide additional educational opportunities for children attending the Western Reserve School District.
- B. Bargaining unit positions shall not be reduced solely due to the district's participation in LDL.
- C. All LDL assignments will be posted according to Section 3.10, Transfers and

Assignments, of the Collective Bargaining Agreement.

- D. The evaluation of Western Reserve teachers of LDL courses shall be in accordance with Section 3.13, Teacher Evaluation, of the Collective Bargaining Agreement. All evaluations/observations shall require the physical presence of the evaluator. Observations shall not be conducted by electronic means without prior notice.
- E. A committee will be formed consisting of four (4) association members and four (4) board/management members, to monitor online yearly school progress, workload and compensation. This committee will make recommendations.

3.21 Resident Educator Program

A. Purpose

The mentoring program will provide Western Reserve School District's new teachers with coaching, mentoring, and guidance that are critical to improving their skills, knowledge, and student achievement. This program includes:

- 1. A program of support provided by the school district to meet the unique needs of an individual in their first year of teaching in the Western Reserve Local School District.
- 2. A four-year program created by statute designed to provide newly licensed Ohio educators quality mentoring and guidance. Successful completion of the residency program is required to advance to a five-year professional educator license.
- 3. The mentoring program will be administered and funded by Western Reserve Local School District.

B. Definitions

- 1. Resident Educator (RE): A resident educator is a teacher employed under a resident educator license.
- 2. New to District Teacher (NTDT): A new to district teacher is a newly hired teacher with any licensure or certification other than a resident educator license.

3. RE Mentor: A RE mentor is a teacher trained and assigned to provide professional support to a resident educator following the guidelines and protocols of the Resident Educator Program.
4. NTDT Mentor: A NTDT mentor is a teacher assigned to a NTDT to provide professional and environmental support during the teacher's first year at Western Reserve Local Schools.
5. Formative Assessment: Formative assessment is diagnostic and designed to yield information that will help teachers identify specific areas for skill enhancement. Formative assessment consists of collaboration among professionals to provide adequate feedback and assistance to support the growth of individual professional achievement.

C. Description of Mentoring Program

The Western Reserve Local Schools mentoring program will consist of the following components:

1. Superintendent
2. Lead Mentor
3. RE Mentor Teachers
4. NTDT Mentor Teachers
5. Mentor Review Committee (Building Principals and Lead Mentor)

D. Superintendent

The superintendent will be responsible for registering Resident Educators into CORE and input end of year program reports in CORE.

E. Lead Mentor

The following are the responsibilities of the lead mentor:

1. Demonstrate commitment to the professional growth of the district's new teachers
2. Oversee and monitor the district mentoring program
3. Serve as a district resource person
4. Assist Mentor Review Committee in pairing mentors with new teachers

5. Plan mentor and new teacher orientation programs, professional development sessions, and evaluation of the district mentoring program
6. Participate in professional development programs and activities planned by the local school district and ODE
7. Compile an annual district mentor list
8. Document the amount of time spent on lead mentor meetings and activities, and collect documentation from mentors (monthly checklists, observation forms, etc.)
9. Coordinate scheduling of observation and pre- and post-conference times with mentor teachers and building principals.

The following are the criteria for selection of the lead mentor:

1. Minimum of five (5) consecutive years of teaching experience in the Western Reserve Local School District
2. Completion of state mentor training programs
3. Experience in mentoring one or more Western Reserve teachers
4. Continued commitment to the district's mentoring program.

The following are the compensation and release times for lead mentor:

1. The lead mentor shall be granted a limited supplemental contract and be compensated in accordance with the supplemental salary schedule.
2. The lead mentor will collect all forms.
3. Requested release time will be granted upon approval by the superintendent, and coverage provided by the administration to complete the duties of the lead mentor position.
4. Compensation for the lead mentor shall be in addition to that earned as a mentor.

F. Resident Educator Mentors

The following are the responsibilities of mentors of Resident Educators:

1. The RE mentor shall carry out the Resident Educator Program in conjunction with the resident educator as developed by ODE.

2. The RE mentor will consult with and otherwise assist the assigned resident educator teacher on a regular basis within the instructional day.
3. The RE mentor will attend regional mentor network meetings.
4. The RE mentor does not have a formal evaluative role. The mentor's role is to support the growth of the resident educator as an instructional mentor through formative assessment tools.
5. During the RE's first year of teaching, the mentor will use the Resident Educator Program formative assessment tools (collaborative log, Ohio Standards for the Teaching Professional reflection tool, goal-setting agreement) and protocols to support the resident educator.
6. During the RE's second year of teaching, the mentor will use the Resident Educator Program formative assessment tools (collaborative log, Ohio Standards for the Teaching Professional reflection tool, goal-setting agreement) and protocols to support the resident educator.
7. During the RE's third year of teaching, the mentor will use the Resident Educator Program formative assessment tools (collaborative log, Ohio Standards for the Teaching Professional reflection tool, goal-setting agreement) and protocols to support the resident educator or the RE can take the RESA.
8. During the RE's fourth year of teaching – will take the RESA unless another year is needed, determined by district
9. Provide documentation to the lead mentor of mentor activities.

The following are the criteria for selection of Resident Educator mentor teachers:

1. The RE mentor teacher must have continuing contract status and have a minimum of five (5) consecutive years of teaching experience in the district.
2. The RE mentor must be trained to act as a mentor through the Ohio Department of Education Instructional Mentoring Program.
3. The RE mentor must hold a valid teaching certificate/license and may be assigned to resident educators with the same area of certification/license.
4. The RE mentor must have demonstrated the ability to work cooperatively and effectively with the professional staff members and have extensive knowledge of a variety of classroom management and instructional techniques.

The following is the compensation and release time for Resident Educator mentor teachers:

1. RE mentors shall be issued a limited supplemental contract and be compensated in accordance with the supplemental salary schedule.
2. The RE mentor will complete all forms.
3. As mandated by Ohio Resident program requirements, each resident educator mentor will be provided one hour/week release time for collaboration with the RE. (Release time may be used weekly or monthly, and will be coordinated with the building principal.)
4. The district will pay all training fees required for RE mentors to receive the mandatory ODE state mentor training.

G. NTDT Mentors

The following are the responsibilities of mentors of NTDTs:

1. Meet weekly/monthly to enhance the professional growth of the NTDT
2. Provide support to help the NTDT produce effective lessons (preparation, delivery, reflection)
3. Provide other interventions, as needed, to assist in the strengthening of the NTDT's skills and improvement of the NTDT's instruction and efficiency
4. Participate with the NTDT in professional development programs and activities planned by the local school district.
5. Observe the NTDT at least one (1) time during the school year, and be observed by the NTDT at least one (1) time during the school year.
6. Provide documentation to the lead mentor of mentor activities.

The following are the criteria for selection of New to the District mentor teachers:

1. The NTDT mentor must have continuing contract status and have a minimum of three (3) consecutive years of teaching experience in the district.
2. The NTDT mentor must hold a valid teaching certificate/license and may be assigned to resident educators with the same area of certification/license.
3. The NTDT mentor must have demonstrated the ability to work cooperatively and effectively with the professional staff members and have extensive knowledge of a variety of classroom management and instructional techniques.

The following is the compensation and release time for New to the District mentor teachers:

1. NTDT mentors shall be issued a limited supplemental contract and be compensated in accordance with the supplemental salary schedule.
2. The NTDT mentor will complete all forms.
3. NTDT mentors shall be given release time to observe the new teacher one time during the school year, including time to confer with the mentor before and after the observation. The NTDT mentor will also be given release time to be observed by the new teacher one time during the school year, including time to confer with the mentor before and after the observation. Observations and conferences shall be scheduled by the lead mentor in consultation with the building principal.
4. The district will pay all training fees if NTDT mentors choose to receive ODE state mentor training.

H. Mentor Review Committee

1. Responsibilities will include collaboration in the selection and assignment of mentors; address/solve mentor/new teacher concerns, issues, and problems; and comply with ODE and statutory requirements.
2. The Mentor Review Committee will consist of a building principal (applicable to the level of mentor needed), the district lead mentor, a representative of WREA (appointed by the Association) and if possible, the superintendent.
3. The Committee chairperson shall be the lead mentor.
4. The Committee will make application forms for mentor teacher positions available to all bargaining unit members.
5. All members shall attend Mentor Review Committee meetings (including summer meetings) and will be given release up to three times during the school year to attend Committee meetings; said release time shall be separate from any other release time covered under this agreement.
6. The Committee shall determine to what extent to keep and retain records of its meetings, decisions, actions, and recommendations to the extent permitted by law.
7. Mentor teachers and new teachers may meet as a group with the Mentor Review Committee prior to the end of each school year to assess and evaluate the program. Recommendations may be submitted in the form of a written report to the Association and the superintendent not later than May.

I. Resident Educator Program Guidelines

1. Each resident educator will attend an initial orientation that includes

information about district pupils and community; school policies, procedures, and routines; courses of study, competency-based education programs, and lesson plans; district buildings; schedule of the district mentor program; and any additional information necessary to prepare for the teaching assignment.

2. Each resident educator shall meet with mentor to complete all Ohio Resident Program requirements.
3. As mandated by Ohio Resident Program requirements, each resident educator will be provided one hour/week release time for collaboration with mentor. (Release time may be used weekly or monthly and will be coordinated with the building principal.)
4. The resident educator is not required to complete an IPDP or to utilize the LPDC process.
5. An effort will be made by the administration to assign an equitable workload/schedule to a resident educator.

J. New to the District Program Guidelines

1. NTDTs shall participate with their mentors in professional development programs and activities planned by the local school district.
2. NTDTs shall be given release time to observe the mentor teacher one time during the school year, including time to confer with the mentor before and after the observation. The NTDT will also be given release time to be observed by the mentor teacher one time during the school year, including time to confer with the mentor before and after the observation.

Observations and conferences shall be scheduled by the lead mentor in consultation with the building principal.

K. Protections

1. Other than a notation to the effect that a teacher served as a mentor teacher, the teacher's activities as a mentor teacher shall not be part of that resident educator's evaluation.
2. No resident educator shall be required to maintain in a resident educator program after advancing to a professional educator license.
3. In the event that the district does not comply with the resident educator program, the bargaining unit member who is participating in the program shall not be disciplined and/or adversely affected due to the action(s) and/or inaction(s) of the district.
4. Mentor teachers shall not participate in the evaluation of any resident

educator.

5. Mentor teachers shall not be requested or directed to make any recommendation regarding the continued employment of the teacher.
6. No mentor teacher shall be requested or directed to divulge information from the written documentation or confidential mentor/resident education discussions.
7. All interaction, written or oral, between mentor teacher and the resident educator shall be regarded with the same confidentiality as that represented by the attorney/client relationship. Any violation of this tenet by the mentor shall constitute grounds for immediate removal from his/her role as mentor teacher.
8. It is recommended that no mentor be assigned more than one RE or NTDT at a time during a school year. However, if a mentor is assigned more than one RE and/or NTDT, the mentor will be paid for each RE and NTDT they are assigned according to the terms of this agreement. If a mentor is assigned for less than one academic year, compensation shall be prorated.
9. At any time, either the mentor teacher or the new teacher may exercise the option to have a new mentor assigned. The mentor and the resident educator must operate in a trusting and comfortable relationship; therefore, no specifics shall be given as to the exercise of the option and no prejudice or evaluation is to given such change. If a new mentor is assigned to an RE or NTDT, the former mentor shall have his/her supplemental contract terminated without recourse to the grievance procedure and ORC 3319.16. The new mentor shall receive a prorated share of the former mentor's supplemental salary.
10. All members of the Committee, mentor teachers, and resident educators shall keep confidential all discussions, actions, materials, and other information to the extent permitted by law.
11. Mentor teachers shall communicate directly with the resident educators and shall not discuss/report the performance and progress of the resident educator with any administrator, assessor, or other teacher.
12. No mentor teacher shall participate in any informal or formal evaluation of a resident educator or make (or be requested or directed to make) any recommendation regarding the continued employment of a resident educator.
13. The regular evaluation of the mentor teacher shall not be affected in any aspect by the Resident Educator Program or its demands.
14. Resident educators shall be provided all due process provisions allowed by the master agreement and ORC.

15. Resident educators will be placed on the appropriate step and column of the negotiated salary schedule.

Note: This program shall not replace the negotiated employee evaluation system.

3.22 Local Professional Development Committee

A Local Professional Development Committee shall be formed pursuant to Ohio Revised Code 3319.22.

A. Committee Composition

The committee shall consist of four (4) teachers, with a minimum of one (1) teacher per building, selected by the Association, and one (1) individual selected by the superintendent. In the event of a vacancy, the party making the original appointment shall select a replacement.

B. Terms of Office

The term of office for teacher members shall be two (2) years. Terms shall be staggered so that one-half (1/2) of the terms expire annually. One-half (1/2) of the initial appointments shall be for a three (3) year term to enable such staggering of terms. The chair of the committee stays in that position until a replacement is determined, unless unable to do so for personal reasons.

C. Committee Operation

The committee chairperson shall be selected by a majority vote of the committee members. The committee chair and the recorder shall be the official designees whose signatures shall designate approval and completion of an Individual's Professional Development Plan (IPDP).

Decisions shall be made by a majority vote of the committee members present and voting. An administrator may request an administrative majority to review his/her IPDP.

The LPDC shall have the authority to establish its operational rules, in compliance with statute. The LPDC shall not have the authority to abridge or alter terms of the Collective Bargaining Agreement or an individual's employment contract.

D. Meeting Schedule and Compensation

The LPDC shall meet as often as the members deem necessary to complete their work. Not later than September 10 annually, the committee shall post its meeting schedule in each building. Additional meetings may be scheduled as necessary.

Teacher committee members shall be paid twenty dollars (\$20) per hour, up to six hundred dollars (\$600) each, for committee work performed outside the regular workday or work year.

E. Huron County Professional Development Advisory Committee

A teacher member shall be appointed annually by the LPDC to serve on the Huron County Professional Development Advisory Committee. This Advisory Committee shall act as the body to which a teacher may appeal the LPDC's decisions regarding the teacher's IPDP, based upon the rules established by the LPDC. In cooperation with Huron County ESC staff, the Advisory Committee shall process all necessary paperwork to the Ohio Department of Education as required for renewal of certificates/licenses.

3.23 Student Discipline and Professional Staff Member Protection

A professional staff member may remove a pupil from class to the charge of the principal when the seriousness of the offense, persistence of the misbehavior or the disruptive effect of the violation makes the continued presence of the student in the classroom a serious threat to instruction and/or well being of other persons.

In such cases the professional staff member shall furnish the principal in writing as promptly as his/her teaching obligations will permit, full particulars of the incident(s) including any previous action taken by the professional staff member to correct the disciplinary problem and his/her recommendation for the reentry of the pupil into the classroom. When a professional staff member refers a student to any administrator for violation of the building's student code of conduct, that administrator, upon request of the professional staff member, shall report to the professional staff member in a timely fashion the action taken including information about any special circumstances.

Employees shall have a reasonable expectation that Board policy dealing with student threats and violence shall be immediately enforced.

3.24 Employee Discipline

A. Steps for Employee Discipline

It is important to all parties that employees perform as expected and that an employee discipline plan be clear and consistent. The steps of employee discipline are:

Oral reprimand
Written reprimand
Suspension

Nothing herein shall preclude the administration from issuing more than one (1) oral or written reprimand. Based upon the severity of the situation, disciplinary action may warrant deviation from the above procedural order.

B. Areas of Discipline

The administration may take progressive disciplinary action against any teacher for improper conduct related to professional duties as an employee of the Western Reserve Local.

C. Definition of Due Process

Due process for suspension without pay shall include:

1. Written notice of the nature of the offense;
2. Opportunity for the member of the bargaining unit to have a conference with the building principal;
3. Opportunity for a hearing before the superintendent;
4. Right of representation at such hearing by an individual of his or her choice;
5. Written disposition by the superintendent within five (5) workdays of the date of the conference;
6. Written appeal to meet with the Board by the bargaining unit member within seven (7) days of the written disposition by the superintendent; and
7. Meeting with the Board within thirty (30) days of written appeal. The Board shall have the authority to modify or vacate the superintendent's disposition. All disciplinary conferences related to suspensions without pay shall be in executive session. Suspension with pay or temporary reassignment pending disciplinary action are not subject to the above conditions. Except in extenuating circumstances, suspensions shall not become effective until after any appeals (up to and including appeals to the Board) have been exhausted.

D. Files

After three (3) years, a written reprimand on file shall not be the basis of future disciplinary action provided there has been no further reoccurrence of the offense in the subsequent three (3) years and depending on the severity of the offense.

E. Oral Reprimand Procedure

Review of request, rule, order, or regulation will be made which is the basis for the disciplinary action.

The action or failure on the employee's behalf to comply with (1) above will be stated.

It will be stated that an oral reprimand or warning is being issued.

The expectation of the employee will be emphasized.

Help will be offered.

It will be understood that failure to comply will warrant further disciplinary action.

A written note or anecdotal record will be made of date, time, and action on appropriate form and signed by the employee and administrator.

F. Written Reprimand Procedure

Specific facts, such as date, time and place, witnesses to, and actions of the individual will be stated.

The regulation, rule, conduct, procedure, or order violated or breached will be given.

Previous oral reprimands or warnings will be outlined.

It will be stated that this is a written reprimand.

The employee will be given another opportunity to improve; he/she will be subject to further disciplinary action.

It will be stated that, if the employee does not improve, he/she will be subject to further disciplinary action.

A copy will be given to the individual in person and a copy placed in his/her file.

G. Suspension

A certified member of the bargaining unit may be suspended from his or her duties without pay or benefits for a maximum of six (6) days per school year, upon a determination by the superintendent that the conduct of the instructor is detrimental to the goals and objective of the Western Reserve School District. No suspension shall be imposed without due process.

H. Reservation of the Right to Terminate

Nothing herein shall preclude the Board of Education from action or institute contract termination proceedings pursuant to 3319.16 and 3319.161 of the Ohio Revised Code when in the sole and exclusive discretion of said Board it is determined that such action is warranted.

3.25 Labor-Management Committee

At the request of the WREA President, the Board and WREA will meet to establish a meeting schedule and operating rules for a Labor-Management Committee (LMC). Such Committee shall be made up of three (3) members selected by the WREA and three (3) members selected by the Board. Topics for discussion shall be mutually agreed upon and discussions shall be non-binding on either party, unless mutually agreed otherwise.

3.26 Release of Personal Information

Under no circumstances shall an administrator release or distribute teacher's personal information, including, but not limited to home address and telephone number, to anyone who is not an employee of the Western Reserve Local School District without the teacher's written permission.

3.27 Open Enrollment

A. Dependents of teachers may open enroll their children in the Western Reserve Local School District regardless of place of residence. Dependents of teachers shall have first priority on the enrollment of their children, subject to the following limitations:

1. The teacher complies with all yearly registration requirements.
2. There is an available "opening" consistent with the established class size for the grade level.

B. Dependents on expulsion from their district of residence will not be considered for "open enrollment." Dependents attending school in the district shall be held to the code of conduct and must demonstrate proper and acceptable conduct.

3.28 Public Pre-school Program

A. The established Public Pre-school Program shall be operated under a grant funded by the Erie-Huron-Ottawa Educational Service Center and teachers employed in said program shall be bargaining unit members of the Association.

B. Teachers employed in the Public Pre-school Program shall have all rights and benefits of the Collective Bargaining Agreement, except that the following subsections shall not be applicable:

1. 3.06 (A), but that planning time will be scheduled as appropriate during

the regular work week.

2. 3.06 (B), but that the student day will be scheduled to meet the terms of the funding grant and applicable rules and regulations.
3. 3.08, but that the teacher workday shall be seven (7) hours and fifteen (15) minutes in length inclusive of lunch and conference period. The start and end of each student session shall be scheduled to meet the terms of the funding grant and applicable rules and regulations.

3.29 Re-employment of an STRS Retired Teacher

- A. An Association teacher wanting consideration for re-employment in a teaching position after STRS eligibility for retirement shall make a written request to the superintendent at least ninety (90) calendar days prior to the effective date of retirement. Similarly, situated teachers of other school districts shall apply through the normal application process. The superintendent shall send to the Association president a copy of the teacher's written request.
- B. The decision of the superintendent or the Board to re-employ or not re-employ the retiring teacher shall be communicated to the retiring teacher within forty-five (45) calendar days of receipt of the written request.
- C. The decision of the superintendent or the Board not to re-employ a retiring teacher shall not be subject to court action and/or the grievance procedure.
- D. A bargaining unit position to be filled by former bargaining unit member who is a re-employed retired teacher shall not be construed as a vacancy and shall not be posted.
- E. A re-employed teacher (whether from inside or outside the school district) under this subsection shall not be entitled to any severance beyond what the teacher was paid, when the teacher accepted STRS retirement.
- F. A re-employed teacher shall be granted, for salary purposes, service credits at the current educational column at the time the teacher retired with a maximum allowance of ten (10) years of service credit. A retired teacher employed from another school district shall be placed on the salary schedule pursuant to the criteria stated in the Collective Bargaining Agreement.
- G. A bargaining unit member re-employed shall be credited with all years of seniority as long as the teacher is re-employed to the same position. Should the re-employed teacher transfer to a different position, the seniority provisions of the Collective Bargaining Agreement shall not apply and the retired bargaining unit member's seniority shall equal the number of years granted for salary purposes. Retired teachers employed from without the school district will be treated for seniority purposes as all newly hired teachers.
- H. Subject to ERISA and Ohio law, a retired teacher who is employed will be eligible for Board paid health insurance pursuant to STRS. The Collective

Bargaining Agreement shall govern insurance eligibility for all employed retired teachers who work part time. Retired teachers employed under a supplemental contract shall not be eligible for health insurance.

- I. The contract of employment for all retired teachers employed shall be a one-year limited contract that shall automatically expire on the date listed on the contract without any further action of the Board of Education. The provisions of ORC Sections 3319.11 and 3319.111 shall not apply to employment, re-employment, and/or non-re-employment of a retired teacher.
- J. For purposes of a reduction in force, all employed retired teachers shall list as the least senior member of the bargaining unit in their areas of certification/licensure.

3.30 Preparation of IEP Reports by Special Needs Teachers

Subject to substitute teacher availability, special needs teachers will be given one (1) hour per student, per school year, of paid time for the purpose of preparing IEP reports. The special needs teacher must notify the principal of the request at least two school days prior to the taking of said time.

ARTICLE IV - LEAVES OF ABSENCE

4.01 Personal Leave

Each employee shall be authorized three (3) days annually for personal use. Personal leave shall be granted upon submission of the personal leave form (see Appendix E), subject to the following conditions:

- A. Notification shall be given to the superintendent five (5) days in advance, unless circumstances make it impossible to comply herewith, in which event the employee shall notify the superintendent at the earliest possible time. The employee shall be required to make the request in writing, stating the date at five (5) days prior to the requested time off. In case of an emergency, proper forms will be filed by the employee on the first day returning to work. The personal leave form must be completed for any day used. Except for cases of emergencies or unusual circumstances, teachers shall be notified of approval or denial of personal leave within three (3) workdays of submission of requests for personal leave.
- B. No more than six (6) bargaining unit members (three [3] bargaining unit members per building) may utilize personal leave on the same day. Subject to the constraints on personal day usage described in this section, if an employee requests a personal day on a day that three employees in the building have already been approved for personal leave, the employees may confer with one another to determine which three employees will take personal leave on the day in question. Those employees taking personal leave must ensure that the building principal is appropriately notified in the event that a change is made.
- C. Except in cases of emergency or special family events, no employee shall be granted a personal day during the first two weeks of school, during professional development days, and during the day before or the day after a scheduled holiday.
- D. It will be necessary for an employee reporting back from a personal day to complete an absence report, so that the substitute may be paid. Check the personal day box on the absence report.
- E. If a member does not use all of the personal leave available to him or her annually, the member may choose one of the following options:
 - 1. The member may elect to be paid for the unused personal day(s) at the rate of one hundred dollars (\$100.00) per day;
 - 2. The member may roll all unused personal leave into the member's sick leave for the subsequent year;
 - 3. The member may roll not more than two unused personal days for use in the next school year, with a maximum of five (5) days permitted for accrual per year.

A member who has unused personal leave must notify the treasurer in writing of his

or her election under this paragraph on or before the last school day. If a member fails to notify the treasurer of his or her election under this paragraph, by default the member's unused personal leave will roll over into the member's sick leave for the subsequent year.

- F. Under no circumstance may personal leave be used in lieu of professional leave for athletic events/clinics unless a Western Reserve team is participating.

4.02 Sick Leave

- A. Each employee of the Western Reserve Board of Education shall be entitled to fifteen (15) days sick leave with pay, for each year under contract, which shall be credited at the rate of one and one-fourth (1¼) days per month.
- B. All new employees of the Board shall be credited with five (5) days sick leave at the beginning of the school year. Accrual of sick leave shall be at the rate of one and one-fourth (1¼) days per month per year of service. This accrual shall continue until a maximum of two hundred sixty-three (263) days is attained.

For those employees who are employed during the last three (3) years before they retire, a special Individual Sick Leave Account ("ISLA") shall be established which will allow these employees to accumulate a maximum of sixty (60) sick leave days which shall be separate and apart from any other accumulated sick leave provided for in this Agreement (including sick leave as it relates to severance pay, Section 5.09). This ISLA may be used by each individual employee for injuries/illness(es) that may occur during an employee's final two (2) years of employment prior to retirement.

The Board shall be responsible for monitoring each ISLA and for administering the same. Use of days from an ISLA shall be in accordance with any and all other applicable provisions relating to sick leave as provided for in this Agreement.

An employee transferring into the Western Reserve School District shall be credited with the unused balance of his/her accumulated sick leave up to a maximum of one hundred twenty (120) days. The employee shall present the treasurer with a statement from the fiscal officer of the agency from which he/she transfers. An employee transferring into the Western Reserve School District shall be credited with the unused balance of his/her accumulated sick leave up to a maximum of two hundred sixty-three (263) days.

The previously accumulated sick leave of a person who has been separated from public service, whether accumulated pursuant to Section 124.38 or ORC 3319.141, shall be placed to his/her credit upon re-employment in the public service, provided that such re-employment takes place within ten (10) years of the date of the last termination from public service.

- C. No employee may receive credit for more than fifteen (15) days of sick leave in any one year.
- D. The term sick leave as referred to in this Section may be considered as any absence by any employee for the following reasons and conditions:

- 1. Personal illness

- 2. Illness in the employee's family

- a. Employees may use sick leave upon the approval of the local superintendent for illness in the employee's immediate family. "Immediate family" shall be interpreted as husband, wife, child, sister, brother, or any other member of the family unit living in the same household no matter what degree of relationship.
- b. Three (3) days sick leave will be granted to the employee for illness of parents, in-laws or children living outside the household on approval of the superintendent.

- 3. Death of a Relative

Employees shall be allowed to use three (3) days of sick leave, and additional days approved by the local superintendent, in the event of a death of a parent, child, spouse, sister, brother, parent-in-law, grandparent, grandchild, or anyone who for all practical purposes has held any of the positions enumerated herein.

- 4. Funeral

An employee shall be allowed to use one (1) day of sick leave, and additional days approved by the local superintendent, to attend the funeral of an aunt, uncle, nephew, niece, sister-in-law, brother-in-law, son-in-law, daughter-in-law, friend, or anyone who for all practical purposes has held any of the positions enumerated herein.

- 5. Exposure to contagious diseases

- a. In case of exposure to contagious diseases, which could be communicated to other employees, the approval of a physician must be presented for the entire period of absence.
- b. In the case the exposure involved quarantine resulting from the illness of another person, the certificate of the attending physician or public health official shall be presented for the entire period of absence.

6. Personal injury

An employee will not be permitted to return to his or her duties without the permission of the local superintendent, if the employee is unable to perform his or her duties.

E. Sick Leave Records

1. The local superintendent shall be responsible for keeping sick leave records and forms.
2. A teacher shall furnish a written signed statement on forms prescribed by the Board to justify the use of sick leave. This form shall be submitted to the building principal or superintendent's office no later than the first day after returning to work.
3. If medical attention is required, the employee's statement shall list the name and address of the attending physician and dates when he was consulted.

F. Falsification of a statement is grounds for suspension or termination of employment under Sections 3319.081 and 3319.16.

G. No sick leave shall be granted or credited to a teacher after retirement or termination of employment.

H. A form will be provided so that a teacher may request from the superintendent's office the following information:

1. Current accumulated sick leave.
2. Days used this year.

4.03 Professional Leave

A. The Board of Education may grant two (2) days of professional leave at a teacher's request without loss of pay to help keep teachers abreast of new innovations and teaching techniques, to attend workshops, seminars, conferences, or to observe innovations that are proposed for the Western Reserve Local Schools. Such leave shall be granted contingent upon advance approval of the principal, superintendent, and the Board of Education.

B. All written requests for the professional leave must be presented first to the principal and then forwarded to the superintendent. Requests with estimated costs shall be submitted in a timely manner. Approval shall be conditioned upon content of program, substitute availability, and available budgetary resources. Teachers shall be notified of approval or denial of requested leave within three (3) working days of submission of the request.

C. The Board shall reimburse expenses incurred for approved professional leave,

provided the teacher submits receipts and appropriate forms. Teachers shall be reimbursed for registration up to three hundred fifty dollars (\$350), and up to twenty-five dollars/day (\$25.00) for meals including gratuity, up to seventy-five dollars/day (\$75.00) for lodging, and mileage at the IRS-approved rate in effect July 1 annually for teachers who attend above mentioned meetings. In addition, should attendance at the requested meeting require air transportation, airfare reimbursement shall be limited to two-hundred dollars (\$200). Note that all of the above reimbursement limitations may be waived upon availability of grant money to fund such requests. When possible teachers will car pool. Alcoholic beverages shall not be subject to reimbursement.

- D. The Board or the administration may request or direct a teacher to attend a professional development activity. Such requests shall be made in writing, and the Board shall reimburse one hundred percent (100%) of the teacher's expenses, not subject to the limits noted in Part C. Such leave shall be in addition to the two (2) days of leave permitted in Part A.

4.04 Parental Leave

- A. A teacher shall be granted up to six (6) calendar weeks of parental leave for absence related to the birth/adoption of a child. Sick leave, if available, may be used for this purpose. The six (6) calendar weeks of parental leave must be taken within the school year as defined in 3.09 (A). All other leave related to the birth/adoption of a child shall be classified as parental leave. The rights of the pregnant employee shall be pursuant to law.
- B. A teacher shall be granted an unpaid leave of absence for parental or adoption purposes up to one (1) school year as defined in 3.09 (A). A written request must be made by the employee stating the day the leave will become effective. The request must be made sixty (60) days, if possible, but no later than thirty (30) days, prior to the beginning of the desired leave.

A teacher on an unpaid parental leave of absence shall be entitled to return to duty on the first day of the first semester or the first day of the second semester. Requests for returning to work prior to the start of a semester will be determined on a case by case basis. The teacher shall notify the superintendent at least forty-five (45) calendar days prior to the date of return.

Upon return from an unpaid parental leave, the teacher shall resume the contract status which he/she held prior to such leave. If one hundred twenty (120) days of work has not been established, the teacher will not be entitled to advance a step on the salary schedule at the completion of that school year.

If the teacher desires to continue his/her insurance benefits during the leave of absence (not covered by family medical leave), he/she must pay the full premium amount through a check to the treasurer of the school district on a date each month established by the treasurer.

- C. Contract Rights

1. Limited contract teachers shall retain limited contract status upon return from parental leave.
2. Continuing contract teachers shall retain continuing contract status upon return from parental leave.
3. The teacher granted a leave of absence for parental purposes may pay both the school Board's share and the teacher's share of the retirement, upon approval of the STRS, concerning the time on the leave of absence.

4.05 Assault Leave

A teacher who must be absent due to physical disability resulting from an assault on such teacher which occurs in the course of Board employment and/or Board-related activities shall be eligible for assault leave. Full pay status (days not charged to sick leave) under assault leave can be granted up to a maximum of fifteen (15) days beginning with the first day of said absence due to an assault. At the end of the fifteen (15) days the teacher may use sick leave or receive worker's compensation (if eligible) for the period of the physical disability.

Eligibility shall be determined by the superintendent and will be based on a signed statement on the appropriate form which shall include but not be limited to the following:

1. Nature of the injury
2. Date and time of occurrence
3. Identification of the individual or individuals causing the assault if known
4. Facts and circumstances surrounding the assault
5. A certification from a licensed physician describing the nature of the injury sustained causing absence. The Board may require, at Board expense, a second opinion to verify that the employee is unable to return to work as a result of an assault. Should conflicting opinions be forthcoming from these two (2) physicians, a third physician's opinion shall be determinative.
6. The assaulted party and the Board agree to cooperate with each other if either decides to pursue legal action against the assaulter or assaulters.

If sick leave becomes exhausted, the teacher may apply for further sick leave. Whether such additional leave is granted shall be determined solely by the superintendent.

Following such leave employees shall be returned to duty provided their contracts have not expired, they have not resigned, or that they have not become eligible for disability retirement. Such determination shall be made by the superintendent based on the opinion of the teacher's licensed physician. Falsification of the signed statement to determine eligibility for assault leave benefits or the physician's certificate is grounds for suspension or termination of employment.

4.06 Jury Duty

- A. Jury duty leave will be granted any full-time teacher who serves on a jury and provides the school a reasonable notice of his/her summons prior to the commencement of jury duty.
- B. The full pay of the employee shall be allowed for such service provided the check received by the teacher for service is endorsed to the Board.
- C. This leave will not be deducted from any other type of leave.
- D. The request for exemption from jury duty shall rest solely with the teacher, but he/she may not use his/her employment as a reason for exemption without approval by the employer.

4.07 Leave of Absence (Personal Illness, Disability, Educational, and Professional Reasons)

- A. Upon the written request of a teacher, the Western Reserve Board of Education may grant a leave of absence for a period of not more than one (1) school year for educational or professional reasons. When such leave is by reason of illness or disability, the Board of Education is required to grant such leave.
- B. A request for a semester or a year leave of absence for educational or professional purposes will be limited to one (1) request per a five-year period. A leave for educational or professional reasons will not be granted for less than one (1) semester. A teacher requesting a leave of absence for other work or gainful employment will not be considered. Any request must be filed before July 10 for the up and coming school year to be considered by the Board.
- C. Any leave of absence covered by this policy and granted by the school Board will be without pay. All health, dental, and life insurance coverage by the school Board will expire the day the leave of absence becomes effective.

If the teacher desires to continue health insurance benefits during the leave of absence, he/she must pay the full premium amount through a check to the treasurer of the school district on a date each month established by the treasurer.

- D. When returning from a leave of absence covered by this policy, a teacher resumes the contract status held prior to the leave. A teacher returning is entitled to return to his or her former teaching position unless the teacher has been properly reassigned to another position by the superintendent. A teacher on a leave of absence may not return to assigned duty prior to the duration of the leave. Contract status must be resumed at the beginning of a school semester or the beginning of the school year and failure to return to active service at the expiration of a leave of absence shall be considered a violation of the contract and shall terminate the teacher's employment with the Western Reserve School System.

A teacher on a leave of absence must declare to the superintendent in writing by

December 1 (first semester) or by April 1 (year leave of absence) of his or her intention of returning to the school system for the next semester or school year.

Requests for returning to work prior to the start of a semester will be determined on a case by case basis.

- E. An employee granted a leave of absence because of disability or personal illness may request more than one (1) leave of absence and up to two (2) years at a time. A leave because of disability would be subject to STRS rules and regulations. Also, the employee must file with the superintendent a medical certificate of health issued by the attending physician at the time the employee is requesting to return to active duty.
 - 1. Limited contract teachers shall retain limited contract status unless eligible for a continuing contract.
 - 2. Continuing contract teachers shall retain continuing contract status upon return.
- F. The teacher granted a leave of absence for professional growth may pay both the school Board's share and the teacher's share of the retirement upon approval of the STRS commencing the time of the leave. Payment will be made as requested by the STRS and treasurer.

The placement on the salary schedule will not be increased by the purchase of this retirement time.
- G. When a certified employee is absent from his or her assigned duties because of illness, and has used all available sick leave, and has not made a formal request for a leave of absence, such absence shall be considered on the same basis as though a leave had been granted by the Board of Education. The teacher shall be subject to leave of absence regulations of the Western Reserve Board of Education.

4.08 Association Leave

Up to three (3) days shall be available each school year for use by a WREA designated member to attend OEA meetings inclusive of Representative Assemblies. These days shall be in addition to any other type of paid leave to which an employee is entitled. Substitute teachers, if hired, shall be provided at Board expense; however, all other expenses are to be borne by the WREA or the WREA member. Notice of use of Association leave shall be in writing by the WREA president and shall be forwarded to the superintendent at least five (5) calendar days in advance of using such leave. Leave may be used in one-half (1/2) day increments.

4.09 Family and Medical Leave

- A. The parties agree to abide by the terms and provisions of the federal Family and Medical Leave Act of 1993. All benefits guaranteed by the Act will be provided to employees covered by this Agreement and shall be in addition to any other benefits

provided herein. Furthermore, the benefits of the FMLA are not intended to supersede or diminish any other leave provisions contained in this Agreement.

- B. Each eligible employee is entitled to take and shall be granted up to a combined total of twelve (12) weeks of unpaid leave per contract year on an individual, rolling twelve (12) month basis. Eligible employees must give at least thirty (30) days notice before taking leave, when leave is foreseeable. Leave may be taken for the following reasons:
 - 1. a serious health condition of the employee that makes the employee unable to perform his or her job
 - 2. the birth and first-year care of a child
 - 3. the adoption or foster placement of a child
 - 4. to care for a child, spouse, or parent who has a serious health condition.
- C. Once an employee has chosen the type of leave and said leave has commenced the employee shall not be allowed to switch back and forth to another leave. The school Board may require a doctor's certificate for leaves involving a serious health condition that affects either the employee or a family member. The school Board may also require second and third opinions and a fitness for duty report to return to work.
- D. When medically necessary, as determined by the employee's physician, leave may be taken intermittently. Intermittent leave which is not medically necessary is subject to the approval of the superintendent.
- E. Eligible employees shall be those employees who have worked for the school district at least one (1) year and who worked for at least 1,250 hours over the previous twelve (12) months.
- F. Employees who take leave under this provision are entitled to the continuation of group medical insurance and life insurance benefits during the period of leave. During this period of leave, the Board shall pay the same premium contribution for medical insurance and life insurance as would be paid by the Board if the employee were working. The employee shall pay the same premium contribution for medical insurance and life insurance as would be paid if the employee were working.
- G. Upon the employee's return from leave granted only under this provision, the Board shall return the employee to the same position he/she occupied prior to the leave.
- H. The taking of leave under this provision shall not result in the loss of any employment benefit accrued prior to the date the leave commenced nor shall such leave affect the seniority of such employee.
- I. Any alleged violation(s) of the FMLA may be processed as a grievance utilizing the provisions contained herein in Article II; however, pursuit of such grievance shall

not prevent an employee from otherwise enforcing his/her rights under the FMLA as provided by law.

4.10 Sick Leave Bank

- A. The Association will submit a new plan to include “Parental Leave.” This plan will be reviewed annually and resubmitted as necessary. The Sick Leave bank is subject to the following expectations:
1. The bank may hold up to ninety-two (92) sick leave days per year.
 2. The WREA will be responsible for the controlling to whom and how many days can be awarded.
 3. Personal sick leave must first be exhausted as well as all other available paid leaves.
 4. Days drawn from the bank cannot be used for severance pay.
 5. Days cannot be used toward supplemental contracts, summer school, or extended services, or any other part-time or second position held by a member with a full-time contract.
 6. Days cannot be received for absences appropriately covered by Workers’ Compensation or disability.
 7. The Board treasurer will be notified of awards and donations of sick leave from the bank; otherwise, the Board is not involved in the bank.
 8. The bank cannot discriminate.
 9. The Association will present a plan to the Board by December 1st of each year for review.

4.11 Leave for Relatives of Military Personnel

Each employee who has a relative stationed in a military war zone (declared or undeclared) or in an area designated as a “police action” shall be granted, upon request, up to five (5) days of leave with pay per school year. This leave is in addition to any other applicable leave granted by the Agreement. This leave may be used upon deployment, return from deployment, leave during deployment, or any combination thereof.

- A. Relative for this provision shall be defined as spouse, parent, sibling, legal guardian, child, or person(s) for whom the employee was/is designated as legal guardian.
- B. Notification shall be given to the superintendent five (5) school days in advance unless circumstances make it impossible herewith, in which event the employee

shall notify the superintendent at the earliest possible time.

- C. The employee shall submit the proper form in Appendix E-1.
- D. Injury and/or accident to a relative in the military (Section A) shall be subject to the sick leave provision (4.02).

ARTICLE V - SALARY AND FRINGE BENEFITS

5.01 Salary Schedule

The salary indexes are attached as Appendix A and A-1.

The BA Step 0 salary shall be \$34,416 retroactive to July 1, 2019 through June 30, 2020, and newly hired teachers shall be placed at their appropriate experience level.

The BA Step 0 salary shall be \$34,760 effective July 1, 2020 through June 30, 2021, and newly hired teachers shall be placed at their appropriate experience level.

The BA Step 0 salary shall be \$35,108 effective July 1, 2021 through June 30, 2022, and newly hired teachers shall be placed at their appropriate experience level.

Beginning with the 2021-2022 school year, a \$600 MA+45 stipend will be available (must be in teaching content area or teaching practices). All evidence of coursework completion must be turned in by September 30th, and will be payable by October 31st.

5.02 Salary Payment

- A. The Board shall provide the teacher under this Agreement with twenty-four (24) equal pays, payment being made on the fifteenth and the last business day of each month. If the fifteenth or the last business day falls on weekend or holiday, the pay will occur on the preceding business day.
- B. All employees will be required to receive their paychecks through direct deposit.
- C. Pay statements will be sent to employees via electronic mail
- D. If the employee wishes to change deposit information, he/she must notify the treasurer no later than one week before the effective date of change.

5.03 Payroll Deductions

- A. All payroll deductions referred to in the following paragraphs will be provided at no cost to members of the bargaining unit.
- B. Association Dues - Payroll deductions shall be made twice monthly for ten (10) months starting with the first pay in October for Association dues for the Western Reserve Education Association, North Central Ohio Education Association, Ohio Education Association, and National Education Association and for FCPE contributions. Authorization for such deductions shall be made upon the submission by a member of the bargaining unit of a signed membership form. A list of teachers and the total amount to be deducted for each teacher will be turned into the Board office by September 30th each school year and signed by the WREA treasurer. The treasurer of the Board will send a check to the WREA treasurer on the date of the second pay of each month for the total amount of dues deducted during the month.

- C. Credit Union - Payroll deductions for credit union contributions will be made twice a month for each employee who authorizes such deductions. Contributions will be forwarded to the credit union on the same date as paychecks are issued.
- D. Tax-Sheltered Annuities - Payroll deductions for tax-sheltered annuities shall be made twice monthly for employees who authorize such deductions. Deductions for tax-sheltered annuities may be initiated and/or revised effective with the first pay in September or the first pay in January. The treasurer of the Board will forward all such deductions to the appropriate annuity company on the same date as paychecks are issued. One percent (1%) of all full-time Board employees, or at least five (5) employees, shall be required to establish a new agent, broker, or company for tax-sheltered annuity deductions. Those companies established prior to January 1, 1991, shall continue in force so long as any employee is enrolled. As of July 1, 2008, a cap of the current active 403(b) accounts in addition to the Ohio Deferred Compensation shall be maintained, provided the 403(b) plan providers enter into appropriate information sharing agreements.
- E. Insurance - Payroll deductions for an employee's portion of insurance premiums, as established by the terms of this Agreement, shall be equally divided into two (2) deductions per month.
- F. The Association agrees to hold the Board harmless in any suit, claim or administrative proceeding arising out of or connected with the imposition, determination or collection of dues, to indemnify the Board for any liability imposed on it as a result of any such suit, claim or administrative proceeding, and to reimburse the Board for any and all expenses incurred by the Board in defending any such suit, claim or administrative proceeding, including attorney fees and court costs, providing all provisions of this Article have been followed by the Board or its agents. For purposes of this Section, the term "Board" includes the Board of Education of the Western Reserve Local School District, its members, the treasurer, superintendent, and all other members of the administrative staff.

5.04 Extended Contracts

- A. The Board of Education agrees to issue extended contracts for the elementary and high school librarians and the elementary and MS/HS counselors. This extension shall be one (1) week (5 days) immediately prior to the opening of school and one (1) week (5 days) immediately after the closing of the school.

Week before (not to include Wednesday, the week before school starts).

Week after (not to include the last teacher workday).

The elementary and high school libraries will open for business the first day of school and remain open the last day of school.

- B. All extended service compensation for employees receiving extended service shall be on a per diem basis.

5.05 Supplemental Contracts

- A. The contract level will be based on years of experience in that sport or activity at Western Reserve. This has one exception. When dealing with a head coaching position, the starting level may be Board negotiated.
- B. Any person who assumes a newly created position will be placed on Level One, Step 0. If, however, that position existed previously as a non-paid, yet Board sanctioned activity, the person assuming the position will be credited with his/her prior years of experience.
- C. The Western Reserve Board of Education shall have the authority to create, alter, and/or eliminate positions listed under the Supplemental Contract Article. If a position is created and/or altered, the Board of Education shall negotiate with the WREA concerning the rate of compensation for the created and/or altered position.
- D. The salary will be adjusted with the base salary level for that year (see Appendix C).
- E. Non-Academic and partial year supplemental contracts will be paid one time per year, upon completion of the activity and presentation to the Treasurer's Office of an approved payroll voucher. Academic and full year supplemental contracts shall be paid two times per year, 1/2 value on the second pay of January, and the remainder of the contract upon completion of the activity. Each pay period activity must be presented with a payroll voucher. Elementary Vocal Music will be paid one time, at the end of the school year.

Non-Academic positions include: volleyball, cross country, football, marching band, cheerleading, flag corp, pom pom, basketball, wrestling, dance team, wrestlerette, track softball, baseball, pep band, jazz band and weight-room, team coaches/advisors/directors.

Academic and full year positions include: faculty manager, vocal music, drama, class advisors, student council advisors, National Honor Society, academic advisors, mentors, art club, FCCLA, Yearbook, Western Front, Young Authors, Destination Imagination, French Club and Spanish Club advisors/directors, Energy Coach, and Wellness Champion.

- F. All vacancies for supplemental positions shall be posted under the same provisions as teaching vacancies (see Section 3.11, paragraphs G and H).
- G. If a teacher volunteers to serve as head teacher for his/her respective building during the absence of the building principal, the teacher shall be provided with a specific written job description which details the responsibilities and authority of such position.
- H. In the event a contract holder is unable to complete his/her duties, payment will be awarded pro-rated to the number of days of the contract completed. (Contract length is from the first to the last official duty day.)

- I. The Western Reserve Board of Education may cancel a supplemental contract due to lack of participation. A contract holder whose contract is cancelled shall be compensated pro-rated to the number of days of the contract completed.
- J. In addition to Physical Education Teachers, all of the supplemental positions with the exception of the following are required to have and maintain an active and valid Pupil Activity Permit. Positions NOT required: Energy Coach, Vocal Music (HS/MS and elem), Class Advisors, Student Council Advisors, National Honor Society, Academic Advisors, Lead Mentor, Mentor EYT and NTDT, Art Club, French Club, Spanish Club, FCCLA, Western Front, Yearbook (HS and MS), Young Authors, Destination Imagination, Wellness.

5.06 Tax Shelter of STRS

The Board shall adopt the necessary resolutions to implement "Retirement-Tax Shelter" and continue so long as STRS approval exists. This also applies to supplemental earnings.

5.07 Allowance Per Classroom

Each bargaining unit employee will receive one hundred fifty dollars (\$150.00) each year to purchase classroom supplies that are requisitioned starting with approval by the building principal, superintendent, and the treasurer. The request will not be denied providing it is for educational purposes. This in no way limits the employee to one hundred fifty dollars (\$150.00) providing superintendent approval on the request.

5.08 College/Licensure Testing Reimbursement

A. College Reimbursement

The board encourages all members to take advantage of the college reimbursement funds as stated in this section. The board will consider raising caps in the next collective bargaining agreement should these funds be fully utilized. Any bargaining unit member who earns college credit shall be granted tuition reimbursement pursuant to the provisions of this Article. Payment will be made upon satisfactory evidence that the course work has been satisfactorily completed, as exhibited by a transcript, grade card, or letter from the instructor and fee receipt.

The Board will appropriate \$20,000.00 for tuition reimbursement per year. Unused appropriations shall be rolled over to the following year up to a maximum cap of \$25,000.00. Tuition reimbursement shall be based solely on the completion date of the course work.

All evidence of course work completion within this period must be turned in by September 30th, payable by October 31st.

All bargaining unit members wishing to be granted reimbursement must complete an application and submit it to the treasurer upon completion of the course work for which he/she is requesting reimbursement. The application must indicate the number of

hours and when the course(s) was/were completed. A maximum of four hundred dollars (\$400.00) per semester hour and two hundred sixty-eight dollars (\$268.00) per quarter hour, up to six (6) graduate semester hours or the equivalent of nine (9) quarter hours per year, may be reimbursed per bargaining unit member. A maximum of fifteen (15) graduate semester hours will be reimbursed on obtaining a district approved endorsement. If the employee doesn't obtain the endorsement within two (2) years, they will reimburse the district.

Bargaining unit members will be reimbursed an amount calculated in accordance with the following formula:

Tuition fund divided by the total number of semester hours (or equivalent quarter hours) taken by all eligible bargaining unit members multiplied by the number of reimbursable hours taken by each eligible bargaining unit member.

In no case shall an employee be paid more than the actual cost of the course. Money remaining in the fund following payment for the September – August period shall carry over to the next fiscal year up to a maximum cap of \$25,000.00.

Bargaining unit members shall not be eligible for tuition reimbursement until they have worked for the district for one (1) year. To be eligible for reimbursement, the bargaining unit member must not resign from the Western Reserve School District during the subsequent three (3) school years following reimbursement. If a bargaining unit member resigns the subsequent three (3) school years following reimbursement, the amount of tuition reimbursed shall not be paid or shall be deducted from the bargaining unit member's final pay check.

B. Licensure Testing Reimbursement

Tests required by state or federal educational agencies for maintaining or obtaining additional licenses or endorsements can be submitted for reimbursement in the same manner as tuition reimbursement with the following additional requirements: proof of payment and satisfactory passage of the exam. This reimbursement is not to exceed the actual cost of the test. All reimbursements for licensure testing will be calculated after the awarding of tuition reimbursements. Remaining funds after tuition reimbursements will be divided equally between the number of test passed, paid for, and submitted for reimbursement.

5.09 Severance Pay

- A. Upon a teacher's retirement with the Western Reserve School District, said teacher will receive severance pay.
- B. The employee must have eight (8) or more years of service with the state and/or any political subdivisions, four (4) of which must be with the Western Reserve Local School District, to be paid in cash for one-fourth ($\frac{1}{4}$) the value of his accrued, but unused sick leave credit up to a maximum of sixty-six (66) days. If an employee dies before retirement, severance pay shall be paid in cash to the employee's estate for one-fourth ($\frac{1}{4}$) the value of his/her accrued, but unused sick leave credit up to a

maximum of sixty-six (66) days.

- C. The payment shall be based on the employee's per diem rate of pay at the time of retirement (excluding extended time and supplemental salary) and eliminates all sick leave credit accrued, but unused by the employee at the time payment is made.
- D. Such payment shall be made only once to an employee.
- E. Severance pay for retiring employees will be distributed in one (1) payment. The payment shall be made thirty (30) days after formal notification from the retirement system to the employer indicating the employee has officially retired.

5.10 Insurance

A. Medical Insurance

- 1. The Western Reserve Board of Education will finance a plan of group health insurance for each teaching employee so desiring. The group health insurance plan chosen must have the approval of the Western Reserve Education Association and the Western Reserve Board of Education.
- 2. The plan shall include the following:
 - a. Hospital Utilization Review (HUR) and Second Opinion Surgery (SOS).
 - b. Current Plan: Employee contribution – 9% per month in 2019-20;
9% per month in 2020-21;
12% per month in 2021-22.
 - c. Two thousand dollars (\$2,000.00) will be paid at the end of the school year to any employee who does not participate in medical insurance coverage. If the employee does not participate in medical insurance coverage for a period less than a year, this amount will be pro-rated.
 - d. An employee will have the ability to pick up school district coverage due to loss of coverage through another source, with a thirty (30) day waiting period.
- 3. The Board shall provide a Medical Insurance Program. See Appendix F.

B. Dental Insurance

1. If an employee elects dental insurance, the employee's contribution for single or family coverage will be twenty-five percent (25%) of the total monthly premium. The Board will pay seventy-five percent (75%).
2. Employees have the right to select and recommend a plan based on a bid or bids received by the Board and subject to final approval of the Board.
3. The plan shall be equal to or better than that in effect for the 1984-85 school year.

C. Life Insurance

1. The Board agrees to pay for a \$40,000.00 group-term life insurance policy including double indemnity for accidental death and dismemberment for all certified teachers.
2. Life insurance shall be provided for all certified employees for the following amounts and conditions:
 - a. \$40,000.00 of term life insurance shall be provided to each employee.
 - b. \$40,000.00 of accidental death and dismemberment shall be provided to each employee.
 - c. Employees may elect to take just the life.
 - d. The Board will pay 100% of the total premium.
 - e. Plan in effect - term of contract.

D. Liability Insurance

The Board will provide liability insurance to all employees.

E. Vision Insurance

The Board will furnish Plan C (Exam and lenses every 12 months and frames every 24 months).

Family Coverage - three dollars (\$3.00) per month contribution via payroll deduction

Single Coverage - no cost to the employee

Deductible - Exam \$10.00 Materials None

Plan in effect - length of contract

Plan C - Professional Fees

Vision Examination	\$30.00
--------------------	---------

Materials

Lenses:

Single Vision	\$25.00
Bifocals	\$40.00
Trifocals	\$50.00
Lenticular	\$80.00

Frames:	\$25.00
---------	---------

Contact Lenses: (In lieu of all other plan benefits for that frequency period)

Necessary	\$175.00
Cosmetic	\$ 80.00

F. Rx Drugs

A prescription drug benefit will be put into effect and described in Appendices F and F-1.

G. Wellness Benefit

A wellness benefit will be put into effect and described in Appendix F-1.

H. Flexible Spending Account

The Board shall institute a flexible spending account for employees with a Board contribution of \$300/single and \$400/family. Beginning with the 2017-18 school year, the Board contribution will be \$400/single and \$500/family. If the plan administrator does charge a fee for the Board-funded account, the Board shall pay the fee.

5.11 Section 125 Account

The Board shall implement a Section 125 Plan to enable employees to pay their insurance premium contributions with pre-tax dollars. In addition, the Board shall implement a flexible spending account option including a childcare component. Participating employees may contribute additional money to the account as provided by the carrier.

5.12 Business Mileage

All pre-approved miles driven by an employee in his/her personal vehicle on school business shall be reimbursed at the IRS-approved rate in effect on July 1 annually.

5.13 Notification of Eligibility for Continuing Contract

- A. An employee who believes that he or she is eligible for continuing contract status must inform the superintendent in writing of his or her eligibility on or before September 30 of the school year in which the employee is eligible for consideration.
- B. If an employee fails to give notice to the superintendent in accordance with this section, the employee is eligible to receive only a one- or two-year extended limited contract. Said employee must resubmit his or her information to the superintendent at or near the expiration of said limited contract in accordance with this section for consideration thereafter.
- C. All course work submitted for consideration of continuing contract eligibility must have been completed by the employee after achievement of the employee's prior degree.
- D. The provisions of this section take precedence over and supersede RC 3319.11.

5.14 Notification of Eligibility for Raise in Salary Level

In order to be eligible for a raise in salary level in accordance with the schedule attached hereto, an employee must inform the treasurer in writing, and provide transcripts of completed course on or before September 30 of the school year in which the employee is eligible for the raise. Failure to submit such documentation by the deadline waives the employee's claim for a raise in salary level for that school year; and, in order to be considered for a raise the following year, the employee must resubmit the documentation in accordance with this section.

5.15 Reimbursement for BCI FBI Checks

Beginning with the effective date of this master agreement, the Board of Education will reimburse current bargaining unit members for 100% of any costs incurred related to state and federal background checks required by the Ohio Revised Code. Such reimbursement shall be made within thirty (30) calendar days of the Board's receipt of evidence that the employee has paid for the background checks, as it pertains to teaching licenses, once every five (5) years.

ARTICLE VI - OTHER PROVISIONS

6.01 Provisions Contrary to Law

Except as specifically set forth in Section 4117.10(A) of the Ohio Revised Code, this Agreement supersedes and prevails over all statutes of the State of Ohio and all policies, rules, and regulations of the Board and/or administration. However, if any court of competent jurisdiction determines, after all appeals or times for appeal have been exhausted, that any provision herein is unlawful, such provision shall be null and void, but all other provisions of this Contract shall remain in full force and effect.

Within thirty (30) workdays the parties shall meet to negotiate a replacement provision for any declared to be unlawful. To be valid a replacement provision must be properly ratified and signed by each party.

6.02 No Strike

It is agreed and understood that there will be no strike, work stoppage, slowdown, picketing, or other concerted action or refusal or failure to fully and faithfully perform job functions and responsibilities or other interference with the operations of the district by the Association or by its officers, agents, or members during the term of this Agreement, including compliance with the request of other labor organizations to engage in such activity. The employer agrees not to lock out during the terms of this Agreement. However, should the parties enter into a multiple year Agreement containing specified reopeners, the parties agree they will be subject to the applicable terms of the Negotiations Agreement Article as specified in the Master Agreement and shall utilize the impasse procedure stated in Section 1.04 N., Resolving Differences. If an agreement cannot be reached on the specified reopener and the impasse procedure is deemed exhausted, the Association may proceed in accordance with 4117.14 (D)(2). For purposes of this provision only, the impasse procedure shall be deemed to be exhausted after thirty (30) days of mediation unless an extension of time is mutually agreed to by the parties.

6.03 Complete Agreement

The parties acknowledge that during the negotiations which resulted in this Agreement each party had the unlimited right and opportunity to make demands and proposals with respect to any subject or matter not removed by law from the area of collective bargaining and that the understandings and agreement arrived at by the parties after the exercise of that right and opportunity are set forth in this Agreement.

This Agreement supersedes all previously negotiated agreements between the Board and the Association and constitutes the complete negotiated agreement between the parties. Any amendment or agreement supplemental hereto shall not be binding upon either party unless properly ratified by the parties and executed in writing by the parties hereto.

6.04 Amendment Procedure

The parties recognize that circumstances may dictate the need for amending the negotiated agreement. It shall be possible to do so only by mutual agreement of both parties. To be valid, an amendment must be properly ratified and signed by each party. Such amendments shall then be attached to and become a full part of the negotiated agreement.

6.05 No Reprisals

The Board and Association, for themselves and on behalf of their members, employees, and agents, agree that no discrimination, reprisals, or adverse action of any nature will be taken against any employees (in or out of the bargaining unit), students, or parents, directly or indirectly, as a result of, or in any way related to, the bargaining and settlement of this agreement.

6.06 Fair Share Fee

- A. The Board shall deduct from the pay of members of the bargaining unit who elect not to become or to remain members of the UEP, a fair share fee for the Association's representation of such non-members during the term of this contract. No non-member shall be required to subsidize partisan political or ideological causes not germane to the Association's work in the realm of collective bargaining.
- B. Notice of the amount of the annual fair share fee, which shall not be more than 100% of the unified dues of the Association, shall be transmitted by the Association to the treasurer of the Board on or before September 15 of each year during the term of this contract for the purpose of determining amounts to be payroll deducted, and the Board agrees to promptly transmit all amounts deducted to the Association.
- C. The treasurer of the Board shall, upon notification from the Association that a member has terminated membership, commence the check-off of the fair share fee with respect to the former member, and the amount of the fee yet to be deducted shall be the annual fair share fee less the amount previously paid through payroll deduction.
- D. Payroll deductions of such fair share fees shall begin with the second payroll period in January or sixty (60) days after the first day of employment, whichever occurs later.
- E. The Board further agrees to accompany each such transmittal with a list of the names of the bargaining unit members for whom all such fair share fee deductions were made, the period covered, and the amounts deducted for each.
- F. Upon timely demand, non-members may apply to the Association for an advance reduction/rebate of the fair share fee pursuant to the internal procedure adopted by the Association.
- G. The Association represents to the Board that an internal rebate procedure has been

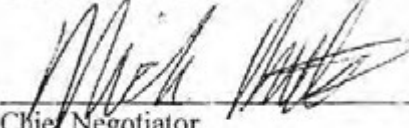
established in accordance with Section 4117.09 (C) of the Revised Code and that a procedure for challenging the amount of the representation fee has been established and will be given to each member of the bargaining unit who does not join the Association and that such procedure and notice shall be in compliance with all applicable state and federal laws and the constitutions of the United States and the state of Ohio.

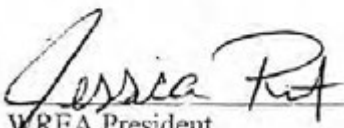
- H. The Association on behalf of itself and the OEA and NEA agrees to indemnify the Board for any cost or liability, including punitive damages, incurred as a result of the implementation and enforcement of this provision provided that:
1. The Board shall give a ten (10) day written notice of any claim made or action filed against the employer by a non-member for which indemnification may be claimed;
 2. The Association shall reserve the right to designate counsel to represent and defend the employer;
 3. The Board agrees to (a) give full and complete cooperation and assistance to the Association and its counsel at all levels of the proceeding, (b) permit the Association or its affiliates to intervene as a party if it so desires, and/or (c) to not oppose the Association or its affiliates' application to file briefs amicus curiae in the action;
 4. The Board acted in good faith compliance with the fair share fee provision of this agreement; however, there shall be no indemnification of the Board if the Board intentionally or willfully fails to apply (except due to court order) or misapplies such fair share fee provision herein.

6.07 Duration of Agreement

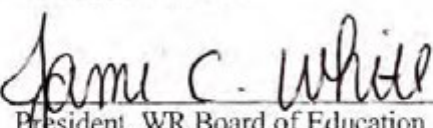
All provisions of this Agreement, unless specifically indicated otherwise, shall become effective July 1, 2019, and shall remain in full force and effect through June 30, 2022, both dates inclusive.

FOR THE WREA:

 11/4/19
Chief Negotiator
SERB Agent of Record

 11/5/19
WREA President

FOR THE BOARD:

 11/6/2019
President, WR Board of Education

 11/06/2019
Superintendent

WESTERN RESERVE LOCAL SCHOOL DISTRICT

SALARY INDEX

Effective July 1, 2019 – June 30, 2020

	<u>BACHELOR</u>	<u>150</u>	<u>MASTER</u>	<u>MA+15</u>	<u>MA+30</u>
STEP 0	1.0000	1.0820	1.1444	1.1965	1.2485
STEP 1	1.0820	1.1288	1.1965	1.2485	1.3005
STEP 2	1.1236	1.1757	1.2485	1.3005	1.3525
STEP 3	1.1652	1.2225	1.3005	1.3525	1.4045
STEP 4	1.2069	1.2693	1.3525	1.4045	1.4566
STEP 5	1.2485	1.3161	1.4045	1.4566	1.5086
STEP 6	1.2901	1.3629	1.4566	1.5086	1.5606
STEP 7	1.3317	1.4097	1.5086	1.5606	1.6126
STEP 8	1.3733	1.4566	1.5606	1.6126	1.6646
STEP 9	1.4149	1.5034	1.6126	1.6646	1.7167
STEP 10	1.4566	1.5502	1.6646	1.7167	1.7687
STEP 11	1.4982	1.5970	1.7167	1.7687	1.8207
STEP 12	1.5398	1.6438	1.7687	1.8207	1.8727
STEP 13	1.5814	1.6906	1.8207	1.8727	1.9247
STEP 14	1.6230	1.7375	1.8727	1.9247	1.9768
STEP 15	1.6646	1.7843	1.9247	1.9768	2.0288
STEP 18	1.7063	1.8311	1.9768	2.0288	2.0808
STEP 21	1.7479	1.8779	2.0288	2.0808	2.1328
STEP 24	1.7895	1.9247	2.0808	2.1328	2.1848
STEP 27	1.8311	1.9716	2.1328	2.1848	2.2368
STEP 30	1.8727	2.0185	2.1848	2.2368	2.2888

WESTERN RESERVE LOCAL SCHOOL DISTRICT

SALARY INDEX

Effective July 1, 2020 – June 30, 2022

	<u>BACHELOR</u>	<u>150</u>	<u>MASTER</u>	<u>MA+15</u>	<u>MA+30</u>
STEP 0	1.0000	1.0820	1.1444	1.1965	1.2485
STEP 1	1.0820	1.1288	1.1965	1.2485	1.3005
STEP 2	1.1236	1.1757	1.2485	1.3005	1.3525
STEP 3	1.1652	1.2225	1.3005	1.3525	1.4045
STEP 4	1.2069	1.2693	1.3525	1.4045	1.4566
STEP 5	1.2485	1.3161	1.4045	1.4566	1.5086
STEP 6	1.2901	1.3629	1.4566	1.5086	1.5606
STEP 7	1.3317	1.4097	1.5086	1.5606	1.6126
STEP 8	1.3733	1.4566	1.5606	1.6126	1.6646
STEP 9	1.4149	1.5034	1.6126	1.6646	1.7167
STEP 10	1.4566	1.5502	1.6646	1.7167	1.7687
STEP 11	1.4982	1.5970	1.7167	1.7687	1.8207
STEP 12	1.5398	1.6438	1.7687	1.8207	1.8727
STEP 13	1.5814	1.6906	1.8207	1.8727	1.9247
STEP 14	1.6230	1.7375	1.8727	1.9247	1.9768
STEP 15	1.6646	1.7843	1.9247	1.9768	2.0288
STEP 18	1.7063	1.8311	1.9768	2.0288	2.0808
STEP 21	1.7479	1.8779	2.0288	2.0808	2.1328
STEP 24	1.7895	1.9247	2.0808	2.1328	2.1848
STEP 27	1.8311	1.9716	2.1328	2.1848	2.2368
STEP 30	1.8727	2.0185	2.1848	2.2368	2.2888
STEP 32	1.9143	2.0654	2.2368	2.2888	2.3408

**WESTERN RESERVE SALARY SCHEDULE 2019-2020
EFFECTIVE JULY 1, 2019**

Step	BA	150	MA	MA+15	MA+30
0	34,416	37,238	39,386	41,179	42,968
1	37,238	38,849	41,179	42,968	44,758
2	38,670	40,463	42,968	44,758	46,548
3	40,102	42,074	44,758	46,548	48,337
4	41,537	43,684	46,548	48,337	50,130
5	42,968	45,295	48,337	50,130	51,920
6	44,400	46,906	50,130	51,920	53,710
7	45,832	48,516	51,920	53,710	55,499
8	47,263	50,130	53,710	55,499	57,289
9	48,695	51,741	55,499	57,289	59,082
10	50,130	53,352	57,289	59,082	60,872
11	51,562	54,962	59,082	60,872	62,661
12	52,994	56,573	60,872	62,661	64,451
13	54,425	58,184	62,661	64,451	66,240
14	55,857	59,798	64,451	66,240	68,034
15	57,289	61,408	66,240	68,034	69,823
18	58,724	63,019	68,034	69,823	71,613
21	60,156	64,630	69,823	71,613	73,402
24	61,587	66,240	71,613	73,402	75,192
27	63,019	67,855	73,402	75,192	76,982
30	64,451	69,469	75,192	76,982	78,771

**WESTERN RESERVE SALARY SCHEDULE 2020-2021
EFFECTIVE JULY 1, 2020**

Step	BA	150	MA	MA+15	MA+30
0	34,760	37,610	39,779	41,590	43,398
1	37,610	39,237	41,590	43,398	45,205
2	39,056	40,867	43,398	45,205	47,013
3	40,502	42,494	45,205	47,013	48,820
4	41,952	44,121	47,013	48,820	50,631
5	43,398	45,748	48,820	50,631	52,439
6	44,844	47,374	50,631	52,439	54,246
7	46,290	49,001	52,439	54,246	56,054
8	47,736	50,631	54,246	56,054	57,861
9	49,182	52,258	56,054	57,861	59,672
10	50,631	53,885	57,861	59,672	61,480
11	52,077	55,512	59,672	61,480	63,288
12	53,523	57,138	61,480	63,288	65,095
13	54,969	58,765	63,288	65,095	66,903
14	56,415	60,396	65,095	66,903	68,714
15	57,861	62,022	66,903	68,714	70,521
18	59,311	63,649	68,714	70,521	72,329
21	60,757	65,276	70,521	72,329	74,136
24	62,203	66,903	72,329	74,136	75,944
27	63,649	68,533	74,136	75,944	77,751
30	65,095	70,163	75,944	77,751	79,559
32	66,541	71,793	77,751	79,559	81,366

WESTERN RESERVE SALARY SCHEDULE 2021-2022
EFFECTIVE JULY 1, 2021

Step	BA	150	MA	MA+15	MA+30
0	35,108	37,987	40,178	42,007	43,832
1	37,987	39,630	42,007	43,832	45,658
2	39,447	41,276	43,832	45,658	47,484
3	40,908	42,920	45,658	47,484	49,309
4	42,372	44,563	47,484	49,309	51,138
5	43,832	46,206	49,309	51,138	52,964
6	45,293	47,849	51,138	52,964	54,790
7	46,753	49,492	52,964	54,790	56,615
8	48,214	51,138	54,790	56,615	58,441
9	49,674	52,781	56,615	58,441	60,270
10	51,138	54,424	58,441	60,270	62,096
11	52,599	56,067	60,270	62,096	63,921
12	54,059	57,711	62,096	63,921	65,747
13	55,520	59,354	63,921	65,747	67,572
14	56,980	61,000	65,747	67,572	69,401
15	58,441	62,643	67,572	69,401	71,227
18	59,905	64,286	69,401	71,227	73,053
21	61,365	65,929	71,227	73,053	74,878
24	62,826	67,572	73,053	74,878	76,704
27	64,286	69,219	74,878	76,704	78,530
30	65,747	70,865	76,704	78,530	80,355
32	67,207	72,512	78,530	80,355	82,181

WESTERN RESERVE LOCAL SCHOOL DISTRICT
SUPPLEMENTAL SALARY SCHEDULE

POSITION	LEVEL1	LEVEL 2	LEVEL 3
	% 0-1	% 2-3	% 4
Faculty Manager	10	10.75	11.50
Head Football	19	19.75	20.50
Varsity Assistant (2)	12	12.75	13.50
Reserve (2)	10	10.75	11.50
Freshman (2)	8	8.75	9.50
Jr. High (3)	6	6.75	7.50
Head Basketball (Boys)	19	19.75	20.50
Asst. Basketball Coach (Boys)	6	6.75	7.50
Reserve	10	10.75	11.50
Freshman	8	8.75	9.50
8th Grade	6	6.75	7.50
7th Grade	6	6.75	7.50
Head Basketball (Girls)	19	19.75	20.50
Asst. Basketball Coach (Girls)	6	6.75	7.50
Reserve	10	10.75	11.50
Freshman	8	8.75	9.50
8th Grade	6	6.75	7.50
7th Grade	6	6.75	7.50
Head Volleyball	15	15.75	16.50
Asst. Volleyball Coach	6	6.75	7.50
Reserve	10	10.75	11.50
Freshman	8	8.75	9.50
8th Grade	6	6.75	7.50
7th Grade	6	6.75	7.50
Head Wrestling	15	15.75	16.50
Reserve	10	10.75	11.50
Freshman	10	10.75	11.50
Middle School (2)	8	8.75	9.50
Head Cross Country	11	11.75	12.50
Cross Country Varsity Assistant (2)	7	7.75	8.5
Middle School	6	6.75	7.5
Head Track	15	15.75	16.50
Reserve (2)	7	7.75	8.50
Jr. High (3)	6	6.75	7.50
Head Baseball	13	13.75	14.50
Reserve	9	9.75	10.50

	LEVEL 1	LEVEL 2	LEVEL 3
	%	%	%
POSITION	0-1	2-3	4
Freshman	7	7.75	8.50
Head Softball	13	13.75	14.50
Reserve	9	9.75	10.50
Freshman	7	7.75	8.50
Weight Room Supervisor	6	6.75	7.50
Energy Coach	8	8.75	9.5
Cheerleading Advisor H.S. Football	5.50	6.25	7.00
Cheerleading Advisor H.S. Basketball	5.50	6.25	7.00
Cheerleading Advisor M.S. (Football & Basketball)	5	5.75	6.5
Wrestlerette Advisor	2.50	3.25	4
Marching Band	12	12.75	13.50
Pep Band	2.75	3.50	4.25
Jazz Band	2.75	3.50	4.25
Flag Corps	2	2.75	3.50
Vocal Music H.S./M.S.	5.50	6.25	7
Vocal Music Elem. (prorated by the percentage of performances)	3	4.5	6
Drama ¹	2.50	3.25	4
9th Grade (2) Class Advisors	1	1.75	2.50
10th Grade (2) Class Advisors	1	1.75	2.50
11th Grade (2) Class Advisors	2	2.75	3.50
12th Grade (2) Class Advisors	1	1.75	2.50
Student Council - H.S.	4.50	5.25	6
Student Council - M.S.	4.50	5.25	6
Student Council - Elementary	3	3.75	4.50
National Honor Society	1	1.75	2.50
Academic Advisor H.S. (2)	4.50	5.25	6
Academic Advisor M.S.	3	3.75	4.50
Academic Advisor Elementary	3	3.75	4.50
Lead Mentor	4	-	-
Mentor – EYT	3	-	-
Mentor – NTDT	1.50	-	-
Art Club	1	1.75	2.50
French Club	1	1.75	2.50
Spanish Club	1	1.75	2.50
FCCLA (2)	4.50	5.25	6
<i>Western Front</i>	36	36	36
Yearbook	8	8.75	9.5
M.S. Yearbook Advisor	4.50	5.25	6
Young Authors (2)	1.00	-	-
Destination Imagination	4	4.75	5.50
Winter Dance Team	3.5	4.25	5
Fall Pompom Team	2	2.75	3.5
Wellness	4.5	5.25	6

State, Federal or Grant funded stipends (voluntary participation)

\$30.00/hour

\$100.00/day

Extra Duty Discipline

After School Detention \$9.50/hour

Friday Detention (2:30 – 6:30 p.m.) \$17.00/hour

Home Tutor Rate - \$30.00/hour

¹Contracts for two separate productions may be awarded.

Step Up to Qualify Preschool Administrator

\$750 Annual Stipend

WESTERN RESERVE LOCAL SCHOOLS

CERTIFIED STAFF GRIEVANCE

Grievant _____ Date _____

Nature of grievance (circumstances, date(s) of occurrence, and statement as to how a violation exists):

Suggested action:

I hereby agree to furnish the Western Reserve Education Association with copies of this formal grievance and copies of the responses by the principal, superintendent, and the Board of Education when I receive them. In relating this information I further recognize my obligation to immediately notify the Association president when this grievance is filed, of planned meeting dates, and to provide the Association with required copies of this form. I understand that if these or any other obligations on my part are not carried out the grievance will be considered terminated, the right to continue the grievance waived and further action on the grievance barred.

Grievant's Signature Date

Principal _____ Date received _____

Response to grievance:

Action taken:

Principal's Signature Date

WESTERN RESERVE LOCAL SCHOOLS

CERTIFIED STAFF GRIEVANCE

Grievant _____ Date _____

Reason for continuing grievance:

Suggested action:

Grievant's Signature Date

Superintendent _____ Date received _____

Response to grievance:

Action taken:

Superintendent's Signature Date

WESTERN RESERVE LOCAL SCHOOLS

CERTIFIED STAFF GRIEVANCE

Grievant _____ Date _____

Reason for continuing grievance:

Suggested action:

Grievant's Signature Date

Board Treasurer _____

Date received _____

Response to grievance by the Board of Education:

Action taken:

Treasurer's Signature Date

WESTERN RESERVE LOCAL SCHOOL DISTRICT

PERSONAL LEAVE FORM - CERTIFIED

This application must be **IN THE OFFICE OF THE SUPERINTENDENT** no later than **five (5) days** before the requested day. Consult the Collective Bargaining Agreement for all applicable rules under this leave.

_____ A.M.
 _____ P.M.
 _____ ALL DAY

Today's Date

Date Requested for Personal Leave

_____Unrestricted personal day (3 per year)

No more than six (6) certified employees (3 per building) may utilize personal leave on the same day. In addition, under no circumstance may personal leave be used in lieu of professional leave for athletic events/clinics unless a Western Reserve team is participating.

Except in cases of emergency or special family events, personal leave will not be granted during the first 2 weeks of school and the last 2 weeks of school, or before or after a scheduled holiday to extend a personal or family vacation. Please provide an explanation for a request of personal leave for a day during the first or last 2 weeks of school or before or after a scheduled holiday.

**** It is the responsibility of the employee, upon their return to school, to fill out an absence report.**

Staff Member's Signature	Date
--------------------------	------

Principal's Signature	Date
-----------------------	------

Superintendent's Signature

Date

WESTERN RESERVE LOCAL SCHOOL DISTRICT

LEAVE FOR RELATIVES OF MILITARY PERSONNEL – CERTIFIED

This application must be **IN THE OFFICE OF THE SUPERINTENDENT** no later than **five (5) days** before the requested day, if five (5) days notice is possible. Consult the Collective Bargaining Agreement for all applicable rules under this leave.

_____ A.M.

_____ P.M.

_____ ALL DAY

Today's Date

Date(s) Requested for Leave

Statement of Employee:

I hereby certify by my signature below that I am requesting leave for purposes as specified in Article 4.11, Leave for Relatives of Military Personnel.

**It is the responsibility of the employee, upon his/her return to school, to fill out an absence report.

Staff Member's Signature Date

Principal's Signature Date

Superintendent's Signature Date

Western Reserve Local Schools A member of Medical Mutual Huron-Erie School Employee SuperMed Plus* Insurance Association SuperMed Plus Effective for the 2013-2014 and 2014-2015 Years		
Benefits	Network	Non-Network
Benefit Period	January 1 st through December 31 st	
Dependent Age Limit	19 Dependent / 25 Student Removal upon End of Month	
Blood Pint Deductible	0 pints	
Lifetime Maximum	\$2,000,000	
Benefit Period Deductible – Single/Family ¹	\$500/\$1,000	\$500/\$1,000
Coinsurance	90%	80%
Coinsurance Maximum – Single/Family ¹	\$500/\$1,000	\$1,000/\$2,000
Coinsurance Out-of-Pocket Maximum (Including Deductible) – Single/Family	\$1,000/\$2,000	\$1,500/\$3,000
Physician/Office Services		
Office Visit (Illness/Injury) ²	\$20 copay, then 100%	\$20 copay, then 80%
Urgent Care Office Visit ²	\$20 copay, then 100%	\$20 copay, then 80%
Routine Services		
Routine Physical Exams (Ages nine and over) ²	\$20 copay, then 100%	\$20 copay, then 80%
Well Child Care Services including Exam, Immunizations and Laboratory Tests (Birth to age nine, limited to a \$500 maximum per benefit period) ²	Exam - \$20 copay, then 100% Immunizations/Labs – 90% - Not subject to deductible	\$20 copay, then 80% Immunizations/Labs – 80% - Not subject to deductible
Routine Mammogram (One per benefit period)	90% not subject to deductible	80% not subject to deductible
Routine Pap Test (One per benefit period)	90% not subject to deductible	80% not subject to deductible
Routine Prostate Specific Antigen (PSA)	90% not subject to deductible	80% not subject to deductible
Routine Endoscopies	90% not subject to deductible	80% not subject to deductible
All Routine X-rays, Medical Tests and Laboratory Tests (Ages nine and over)	90% not subject to deductible	80% not subject to deductible
Outpatient Services		
Surgical Services	90% after deductible	80% after deductible
Diagnostic Services	90% after deductible	80% after deductible
Physical & Occupational Therapy – Facility and Professional (40 visits combined per benefit period)	90% after deductible	80% after deductible
Chiropractic Therapy – Professional Only (12 visits per benefit period)	50% after deductible	50% after deductible
Speech Therapy – Facility and Professional (20 visits per benefit period)	90% after deductible	80% after deductible
Cardiac Rehabilitation	90% after deductible	80% after deductible
Emergency use of an Emergency Room ³	75% copay, then 100%	
Non-Emergency use of an Emergency Room ⁴	\$75 copay, then 90%	\$75 copay, then 80%

Benefits	Network	Non-Network
Inpatient Facility		
Semi-Private Room and Board – Including Ancillaries (365 days per in-hospital benefit period) ⁵	90% after deductible	80% after deductible
Maternity	90% after deductible	80% after deductible
Skilled Nursing Facility (Two days available for each unused in-hospital day)	90% after deductible	80% after deductible
Human Organ Transplants	90% after deductible	80% after deductible
Additional Services		
Allergy Testing and Treatments	90% after deductible	80% after deductible
Ambulance – air if medically necessary	90% after deductible	80% after deductible
Durable Medical Equipment	90% after deductible	80% after deductible
Home Healthcare	90% after deductible	80% after deductible
Hospice Services	90% after deductible	80% after deductible
Private Duty Nursing	90% after deductible	80% after deductible
Mental Health and Substance Abuse		
Inpatient Mental Health and Substance Abuse Services (31 days per benefit period; Substance Abuse limited to 3 admissions per Lifetime)	90% after deductible	80% after deductible
Outpatient Mental Health and Substance Abuse Services (50 visits per benefit period)	50% after deductible	50% after deductible

Note: Services requiring a copayment are not subject to the single/family deductible.

Deductible and coinsurance expenses incurred for services by a non-network provider will also apply to the network deductible and coinsurance out-of-pocket limits. Deductible and coinsurance expenses incurred for services by a network provider will also apply to the non-network deductible and coinsurance out-of-pocket limits.

Non-Contracting and Facility Other Providers will pay the same as Non-Network.

Benefits will be determined based on Medical Mutual's medical and administrative policies and procedures.

This document is only a partial listing of benefits. This is not a contract of insurance. No person other than an officer of Medical Mutual may agree, orally or in writing, to change the benefits listed here. The contract or certificate will contain the complete listing of covered services.

In certain instances, Medical Mutual's payment may not equal the percentage listed above. However, the covered person's coinsurance will always be based on the lesser of the provider's billed charges or Medical Mutual's negotiated rate with the provider.

¹Maximum family deductible. Member deductible is the same as single deductible. 4th quarter carryover applies.

²The office visit copay applies to the cost of the office visit only.

³Copay waived if admitted. The copay applies to room charges only. All other covered charges are not subject to deductible.

⁴Copay waived if admitted. The copay applies to room charges only. All other covered charges are subject to deductible and coinsurance.

⁵An in-hospital benefit period is a period of time beginning when the member enters a hospital and ending when he/she has been out for 90 consecutive days.

Western Reserve Local Schools A member of MEDICAL MUTUAL Huron-Erie School Employee Insurance Association Prescription Drug Program		
Benefits	Copay	Day Supply
Benefit Period	January 1 st through December 31 st	
Dependent Age Limit	Same as Medical	
Retail Program		
Generic Copayment	\$10	30
Brand Name Copayment	\$25	30
Home Delivery Program		
Generic Copayment	\$20	90
Brand Name Copayment	\$50	90

Note: Benefits will be determined based on Medical Mutual's medical and administrative policies and procedures.

This document is only a partial listing of benefits. This is not a contract of insurance. No person other than an officer of Medical Mutual may agree, orally or in writing, to change the benefits listed here. The contract or certificate will contain the complete listing of covered services.

- Oral Contraceptives are covered
- Diabetic Supplies
 - Retail: only needles/syringes are covered
 - Home Delivery/Mail Order: all diabetic supplies are covered, including needles/syringes, blood/urine test strips, lancets, alcohol swabs/wipes

Important Information for Diabetics: You may be able to obtain diabetic supplies at no cost to you by participating in MMO's Diabetes Advantage program. If you have questions about the program and/or wish to enroll, please call 1-800-861-4826.

Huron-Erie School Employee Insurance Association Wellness Plan Effective for the 2015-2016 Year		
Medical Mutual	SuperMed Medical PPO	
Benefits	Network	Non-Network
Benefit Period	January 1 st through December 31 st	
Dependent Age Limit	26 Removal upon End of Month	
Blood Pint Deductible	0 pints	
Overall Annual Benefit Period Maximum	Unlimited	
Wellness Plan Deductible – Single/Family ¹	\$500/\$1,000	\$500/\$1,000
High Deductible Health Plan – Single/Family ¹	\$750/\$1,500	\$750/\$1,500
<i>Requirements for Wellness Plan (Deductible changes occurs on calendar year basis)</i>	<i>Complete Screening and/or Physician form and Health Assessment – November 1st.</i>	<i>Complete Screening and/or Physician form and Health Assessment – November 1st.</i>
Coinsurance	90%	70%
Coinsurance Out-of-Pocket Maximum (Excluding Deductible) – Single/Family	\$1,000/\$2,000 (Wellness) \$750/\$1,500 (HDHP)	\$2,500/\$5,000 (Wellness) \$2,250/\$4,500 (HDHP)
Coinsurance Out-of-Pocket Maximum (Including Deductible) – Single/Family	\$1,500/\$3,000 (Wellness) \$1,500/\$3,000 (HDHP)	\$3,000/\$6,000 (Wellness) \$3,000/\$6,000 (HDHP)
Physician/Office Services		
Office Visit (Illness/Injury) ²	\$25 copay, then 100%	\$25 copay, then 70%
Specialist Office Visit ²	\$40 copay, then 100%	\$40 copay, then 70%
Urgent Care Office Visit ²	\$40 copay, then 100%	\$40 copay, then 70%
Preventive Services		
Preventive Services in accordance with federal law⁶	100%	70% after deductible
Routine Physical Exams ²	100%	\$25 copay, then 70%
Well Child Care Services including Exam, Routine Vision, Routine Hearing Exams, Well Child Care Immunizations and Laboratory Tests (Birth to age 21, Unlimited)	100%	\$25 copay, then 70%
Routine Mammogram (One per benefit period)	100%	70% not subject to deductible
Routine Pap Test (One per benefit period)	100%	70% not subject to deductible
Routine Prostate Specific Antigen (PSA)	100%	70% not subject to deductible
Routine Endoscopies	100%	70% not subject to deductible
All Routine X-rays, Medical Tests and Laboratory Tests	100%	70% not subject to deductible
Outpatient Services		
Surgical Services	90% after deductible	70% after deductible
Diagnostic Services	90% after deductible	70% after deductible
Physical & Occupational Therapy – Facility and Professional (40 visits combined per benefit period)	90% after deductible	70% after deductible
Chiropractic Therapy – Professional Only (12 visits per benefit period)	50% after deductible	50% after deductible

Benefits	Network	Non-Network
Speech Therapy – Facility and Professional (20 visits per benefit period)	90% after deductible	70% after deductible
Cardiac Rehabilitation	90% after deductible	70% after deductible
Emergency use of an Emergency Room ³	\$100 copay, then 100%	
Non-Emergency use of an Emergency Room ⁴	\$200 copay, then 90%	\$200 copay, then 70%
Inpatient Facility		
Semi-Private Room and Board – Including Ancillaries (365 days per in-hospital benefit period) ⁵	90% after deductible	70% after deductible
Maternity	90% after deductible	70% after deductible
Skilled Nursing Facility (Two days available for each unused in-hospital day)	90% after deductible	70% after deductible
Human Organ Transplants	90% after deductible	70% after deductible
Additional Services		
Allergy Testing and Treatments	90% after deductible	70% after deductible
Ambulance – air if medically necessary	90% after deductible	70% after deductible
Durable Medical Equipment	90% after deductible	70% after deductible
Home Healthcare	90% after deductible	70% after deductible
Hospice Services	90% after deductible	70% after deductible
Private Duty Nursing	90% after deductible	70% after deductible
Mental Health and Substance Abuse – Federal Mental Health Parity		
Inpatient Mental Health and Substance Abuse Services	Benefits paid are based on corresponding medical benefits	
Outpatient Mental Health and Substance Abuse Services		

Note: Services requiring a copayment are not subject to the single/family deductible.

Deductible and coinsurance expenses incurred for services by a non-network provider will also apply to the network deductible and coinsurance out-of-pocket limits. Deductible and coinsurance expenses incurred for services by a network provider will also apply to the non-network deductible and coinsurance out-of-pocket limits.

Non-Contracting and Facility Other Providers will pay the same as Non-Network.

Benefits will be determined based on Medical Mutual's medical and administrative policies and procedures.

This document is only a partial listing of benefits. This is not a contract of insurance. No person other than an officer of Medical Mutual may agree, orally or in writing, to change the benefits listed here. The contract or certificate will contain the complete listing of covered services.

In certain instances, Medical Mutual's payment may not equal the percentage listed above. However, the covered person's coinsurance will always be based on the lesser of the provider's billed charges or Medical Mutual's negotiated rate with the provider.

¹Maximum family deductible. Member deductible is the same as single deductible. ⁴th quarter carryover applies.

²The office visit copay applies to the cost of the office visit only.

³Copay waived if admitted. The copay applies to room charges only. All other covered charges are not subject to deductible.

⁴Copay waived if admitted. The copay applies to room charges only. All other covered charges are subject to deductible and coinsurance.

⁵An in-hospital benefit period is a period of time beginning when the member enters a hospital and ending when he/she has been out for 90 consecutive days.

⁶**Preventive services include evidence-based services that have a rating of "A" or "B" in the United States Preventive Services Task Force, routine immunizations and other screenings, as provided for in the Patient Protection and Affordable Care Act.**

MEDICAL MUTUAL Huron-Erie School Employee Insurance Association Prescription Drug Program Wellness Plans		
Benefits	Copay	Day Supply
Benefit Period	January 1 st through December 31 st	
Dependent Age Limit	26 / Removal upon End of Month	
Over the Counter Drugs (Retail Only)		
Proton Pump Inhibitors (i.e., Prilosec OTC – Omeprazole) ¹	\$0	30
Retail Program ³		
Immunization and Generic Contraceptives ²	\$0	N/A
Generic Copayment	\$7.50	30
Formulary Copayment	\$25	30
Non-Formulary Copayment	\$50	30
Home Delivery Program ³		
Generic Copayment	\$15	90
Formulary Copayment	\$50	90
Non-Formulary Copayment	\$100	90

Note: Benefits will be determined based on Medical Mutual's medical and administrative policies and procedures.

This document is only a partial listing of benefits. This is not a contract of insurance. No person other than an officer of Medical Mutual may agree, orally or in writing, to change the benefits listed here. The contract or certificate will contain the complete listing of covered services.

- Diabetic Supplies
 - Retail: only needles/syringes are covered
 - Home Delivery/Mail Order: all diabetic supplies are covered, including needles/syringes, blood/urine test strips, lancets, alcohol swabs/wipes
- Coverage Management Programs included – Prior Approval, Step Therapy and Quantity Duration

Important Information for Diabetics: You may be able to obtain diabetic supplies at no cost to you by participating in MMO's Diabetes Advantage program. If you have questions about the program and/or wish to enroll, please call 1-800-861-4826.

¹Proton Pump Inhibitors (PPI's) are a class of drugs that inhibit gastric acid production and are used to treat a variety of gastrointestinal conditions.

²Coverage includes Preventive Medications, in accordance with Federal Law.

³If your Prescription Order is for a Prescription Drug that is available through the Home Delivery Prescription Drug program and you choose not to use the Home Delivery Prescription Drug program, no benefit will be provided when your Prescription Order is filled beyond the third fill.

SCHOOL

RATING

S U

S U

S U

S U

S U

S U

S U

S U

S U

OVERALL EVALUATION: **S** **U**

Principal's Signature / Date

School Counselor's Signature / Date

SCHOOL COUNSELOR OBSERVATION INSTRUMENT (SCOI)

Counselor (name) _____

School (name) _____

Observer _____ Date _____ Beg. Time _____ End Time _____

Directions: This instrument is to be used for the minimum observation period of thirty minutes. Place a check by the indicator number when the behavior is observed. Place an "X" observed, but outside of observation time frame. Use the Comments/Recommendations space for descriptive notes.

A. Demonstrates the Ability to Plan and Deliver Guidance Services

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Shows evidence of planning in formulating and implementing program.
	_____ 2. Makes effective use of time.
	_____ 3. Shows evidence of flexible procedures.
	_____ 4. Uses supplemental materials to enhance guidance services.
	_____ 5. Demonstrates knowledge of availability of community resources.
	_____ 6. Uses technology for monitoring student progress, student career/academic planning, acquiring and accessing data needed to inform decision making of individual students and whole school.
	_____ 7. Selects appropriate classroom/guidance activities.
	_____ 8. Demonstrates familiarity with pupil progression plan.
	_____ 9. Demonstrates knowledge of district/state/federal policies regarding special services.
	_____ 10. Uses evaluative information for program improvement.

B. Demonstrates Knowledge of Counseling Techniques and Student Development

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Demonstrates multicultural and cross-cultural sensitivity.
	_____ 2. Utilizes counselor techniques that are sound, appropriate, and research- or experientially-based.
	_____ 3. Exhibits knowledge of child growth and development, including learning styles.
	_____ 4. Keeps abreast of and utilizes current guidance and counseling developments and techniques.

C. Demonstrates the Ability to Utilize Group Management Techniques

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Uses time effectively
	_____ 2. Specifies expectations for group behavior.
	_____ 3. Encourages active participation.
	_____ 4. Maintains momentum of presentation.
	_____ 5. Provides feedback that is constructive.
	_____ 6. Demonstrates non-verbal behavior that shows interest.

D. Shows Sensitivity to Student Needs by Maintaining a Positive School Climate

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Establishes/maintains rapport with students.
	_____ 2. Establishes climate of courtesy and respect.
	_____ 3. Holds reasonable expectations for student social/academic behavior.
	_____ 4. Demonstrates enthusiasm for student performance or involvement.
	_____ 5. Reinforces/rewards appropriate social/academic behavior.
	_____ 6. Treats all students fairly.

Satisfactory teaching behaviors were demonstrated: _____ yes _____ no If no, date Success Plan conference scheduled: _____

*Post-observation conference must be scheduled within _____ days of observation.

Signature of Counselor / Date

Signature of Observer / Date

SCHOOL COUNSELOR PROFESSIONAL BEHAVIORS INSTRUMENT (SCPBI)

School Counselor (name) _____
School (name) _____ Reviewer _____

E. Demonstrates Ability to Assess Student/Program Needs for Academic Support

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Takes students' interests, needs, and abilities into account when helping them formulate plans for the future.
	_____ 2. Demonstrates understanding of equity/inclusion for under-represented students in rigorous course work.
	_____ 3. Uses data to affect change.
	_____ 4. Advocates for an optimum testing environment.
	_____ 5. Demonstrates knowledge and ability to properly interpret standardized test results.
	_____ 6. Provides consultation to parents and teachers with regard to meeting needs of students.
	_____ 7. Assists in the formulation of instructional support strategies.

F. Demonstrates Ability to Communicate Effectively

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Is readily accessible to students, teachers, parents, and administrators.
	_____ 2. Shares information with students, teachers, parents, and administrators through individual consultation, presentations, and supplementary materials.
	_____ 3. Facilitates communication among students, parents, school personnel, and community resources.
	_____ 4. Uses effective and correct oral and written communications.
	_____ 5. Demonstrates social advocacy skills, i.e., effective voice in challenging the status quo in systems where inequities impede students' academic success.
	_____ 6. Responds promptly and appropriately to parental concerns.

G. Demonstrates Willingness to Assume General Professional Responsibilities

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Adheres to school and district policy.
	_____ 2. Maintains accurate records.
	_____ 3. Indicates and conducts parent-teacher conferences to report student progress according to school board policy.
	_____ 4. Exercises due care of equipment under his/her care.

H. Demonstrates a Commitment to Professional Growth

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Continues to pursue professional growth and development through workshops, seminars, college course work, and/or other professional activities.
	_____ 2. Participates in school and/or district committees.

I. Shows Evidence of Professional Characteristics

<u>Comments/Recommendations</u>	<u>Indicators</u>
	_____ 1. Demonstrates initiative and assumes responsibility.
	_____ 2. Demonstrates behaviors reflecting dignity and worth of people.
	_____ 3. Exercises good judgment.
	_____ 4. Maintains confidentiality.
	_____ 5. Maintains good attendance.
	_____ 6. Is punctual.
	_____ 7. Maintains professional appearance.
	_____ 8. Exercises emotional self-control.
	_____ 9. Accepts evaluation and redirection and makes necessary changes or adjustments.
	_____ 10. Acts as student advocate.

Signature of Reviewer / Date

Signature of Counselor / Date

Name of School Counselor: _____
School: _____
Principal: _____
Period Covered by this report: From: _____ To: _____
Year of Assignment: _____
Grade Assignment: K-6 7-12
Certification Status: _____
Contact Status: _____

School Counselor Evaluation Document

The following rubric was designed by administrators and non-teaching professionals based on research in the field of Teacher Evaluation and based on the specific needs of educators. It meets the criteria of providing a meaningful tool for the assessment and measurement of teaching. It addresses five domains of Professional Practice:

- 1. Content Knowledge*
- 2. Ethical Standards and Professional Practices*
- 3. Service Delivery*
- 4. Knowledge of Student Development*
- 5. Communication Skills*

The Rating Scale is: **Unsatisfactory** **Meets Standards** **Above Standard**

SUMMARY EVALUATION FOR SCHOOL COUNSELORS

I. CONTENT KNOWLEDGE: Demonstrates thorough knowledge of his/her discipline

Element	Unsatisfactory	Meets Standards	Above Standard
Professional Knowledge	School counselor displays limited understanding of professional knowledge and has difficulty applying that knowledge to meet students' needs.	School counselor displays knowledge of professional field and effectively applies practices to meet the students' needs.	School counselor displays an extensive knowledge of professional field and skillfully applies expertise to meet students' needs.
Use of Technology	School counselor fails to explore and evaluate technology resources to promote Academic, Social – Emotional, and Career Student Growth.	School counselor often explores and evaluates technology resources to promote Academic, Social – Emotional, and Career Student Growth.	School counselor consistently explores and evaluates technology resources to promote Academic, Social – Emotional, and Career Student Growth.
Professional Growth	School counselor seeks little or no additional professionally related knowledge.	School counselor demonstrates continuing search for new knowledge and utilizes the knowledge with students.	School counselor demonstrates extensive search for new knowledge and utilizes information with students and shares information with staff.

In the area of Content Knowledge, your rating is:

Unsatisfactory

Meets Standards

Above Standard

II. ETHICAL STANDARDS AND PROFESSIONAL PRACTICES

Element	Unsatisfactory	Meets Standards	Above Standard
Knowledge of The American School Counselor Association Code	School counselor does not adhere to the ethical standards of the counseling profession.	School counselor adheres to the ethical standards of the counseling profession.	School counselor displays an extensive knowledge of ethical standards and skillfully applies them to meet students' needs.
Laws, Policies, and Procedures governing school administration	School counselor fails to follow laws, policies, and procedures governing building level counseling.	School counselor follows laws, policies, and procedures governing building level counseling.	School counselor follows laws, policies, and procedures governing building level counseling, and is proactive in working to modify policies as the need arises.
Sharing of non-confidential information	School counselor fails to share appropriate non-confidential information with staff/teacher teams to further student achievement.	School counselor shares appropriate non-confidential information with staff/teacher teams to further student achievement.	School counselor takes a proactive role in sharing appropriate non-confidential information with staff/teacher teams to further student achievement.

In the area of **Ethical Standards and Professional Practices**, your rating is:

Unsatisfactory

Meets Standards

Above Standard

III. SERVICE DELIVERY: Demonstrates appropriate preparation employing the necessary practices to support service delivery.			
Element	Unsatisfactory	Meets Standards	Above Standard
Preparation	School counselor's goals are not clear and do not reflect individual student needs or recent professional research. The service delivery has an unclear structure.	Most of school counselor's goals are clear and reflect individual student needs as well as recent professional research. The service delivery has a clearly defined structure.	All of school counselor's goals are clear and reflect individual student needs as well as recent professional research. The service delivery has a clearly defined structure and allows for differentiation.
Directions and Procedures Structure and Pacing Activities	School counselor's choice and delivery of content is inappropriate in terms of students' needs. Structure, pacing, and directions are ineffective.	School counselor's choice and delivery of content is appropriate in terms of students' needs. Structure, pacing, and directions are effective.	School counselor's choice and delivery of content promotes independent learning and enables the student to generalize skills.
Quality of Questions	The questions were not designed in order to progress towards the service goal.	Most questions are designed to progress towards the service goal and provide adequate time for student to respond.	The questions are uniformly designed to progress towards the service goals and students become active participants in their own growth by formulating questions.
Feedback to Students	Feedback is either not provided or does not facilitate progress towards the desired goal.	Feedback is consistently provided in a timely manner and facilitates progress towards the desired goal.	Feedback is consistently provided in a timely manner and facilitates progress towards the desired goal. Students generalize the feedback in a variety of settings.
Monitors and Adjusts Intervention Strategies and Material to Meet Individual Needs	School counselor has difficulty monitoring or adjusting established strategies, materials and/or instruments to meet the changing needs of the student.	School counselor effectively monitors or adjusts established strategies, materials, and/or instruments to meet the changing needs of the student.	School counselor consistently and effectively adapts intervention procedures to accommodate the changing needs of the students. School counselor also makes maximum use of all available resources to provide for unique situations.

In the area of Service Delivery, your rating is:

Unsatisfactory

Meets Standards

Above Standard

--

IV. KNOWLEDGE OF STUDENT DEVELOPMENT: Demonstrates knowledge of student development, and an appreciation of diversity.

Element	Unsatisfactory	Meets Standards	Above Standard
Identifies and utilizes student strengths	School counselor focuses on weaknesses.	School counselor utilizes students' strengths in order to provide interventions and accommodations.	School counselor helps the student understand his/her strengths and to utilize them.
Knowledge of Characteristics of Age Group	School counselor displays minimal knowledge of development characteristics of age group.	School counselor displays understanding of typical developmental characteristics of age group as well as exceptions to general patterns.	School counselor displays thorough knowledge of typical developmental characteristics of age group, exceptions to the pattern, and the manner with which each student functions within his/her developmental stage.
Developing appropriate plan	Goals are developmentally inappropriate, are unclear, and not suitable. Interaction does not reflect diversity of student needs and abilities.	Goals are appropriate, clear, and suitable. Interaction reflects several types of learning with an understanding of student needs and diversity.	Goals are valuable, related to students, and clear. Interaction reflects multiple types of learning with a clear understanding of the diverse needs and abilities of students.
Knowledge of students	School counselor's performance reflects minimal awareness of learning styles, modalities, and multiple intelligences.	School counselor's performance reflects a solid understanding of learning styles, modalities, and multiple intelligences. School counselor differentiates approaches to meet the diverse needs of multiple levels of students.	School counselor's performance reflects fully differentiated services. School counselor is knowledgeable about students' interests, skills, and approaches to learning.

In the area of **Knowledge of Student Development**, your rating is:

Unsatisfactory

Meets Standards

Above Standard

V. COMMUNICATION SKILLS: Demonstrates the ability to effectively communicate with staff, students, and parents.

Element	Unsatisfactory	Meets Standards	Above Standard
Communication with students	School counselor communicates messages to students without considering students' individual needs; interactions are sarcastic, negative, and/or contain inappropriate comments.	School counselor clearly and effectively communicates messages to students, including modifying presentation based on students' needs; interactions indicate general caring and respect.	School counselor clearly and effectively communicates messages to students, including modifying presentation based on students' needs; interactions demonstrate genuine caring, and respect resulting in apparent student improvement.
Consults with colleagues regarding students' programs, needs, and services	School counselor vaguely communicates information to colleagues without being aware and sensitive to various perspectives and expertise.	School counselor adequately communicates information to colleagues and is aware of various perspectives and expertise.	School counselor succinctly and accurately communicates information to colleagues and is aware and sensitive to various expertise.
Consults with administration regarding students' programs, needs, and services	School counselor does not take initiative in sharing information with administrators. School counselor also vaguely articulates information.	School counselor is proactive and takes initiative in sharing information with administrators. School counselor adequately communicates information.	School counselor is consistently proactive and takes initiative in sharing information and presents useful strategies with administrators. School counselor thoroughly communicates information.
Communication with parents	School counselor vaguely communicates information to parents without being aware and sensitive to their perspectives.	School counselor adequately communicates information to parents and is aware of their perspectives and emotions.	School counselor succinctly and accurately communicates information to parents and is aware and sensitive to their perspectives and emotions.
Educates others in regards to various disabilities and strategies	School counselor does not take initiative in regards to sharing expertise with school personnel.	School counselor takes initiative in regards to sharing expertise with school personnel.	School counselor takes initiative in regards to sharing expertise and then assist with continual implementation.
Articulates information about students in writing	School counselor vaguely and inaccurately communicates strengths and weaknesses of students.	School counselor clearly and accurately analyzes the students' strengths and weaknesses and is able to articulate the ideas in writing.	School counselor clearly and accurately analyzes the students' strengths and weaknesses and is able to articulate the ideas in writing. The school counselor also demonstrates sensitivity and adjusts format to address the audience.

In the area of Communication Skills, your rating is: **Unsatisfactory** **Meets Standards** **Above Standard**

Statement of Evaluated Counselor:
I have read the foregoing report. I understand that a copy of it will be placed in my professional file.

Signature of Counselor: _____

Signature of Evaluator(s): _____

Position:

Principal

Assistant Principal

Date:

INDEX

	<u>Section</u>	<u>Page No.</u>
Allowance Per Classroom.....	5.07.....	55
Amendment Procedure.....	6.04.....	62
Assault Leave.....	4.05.....	46
Association Leave.....	4.08.....	48
Bus Duty.....	3.04.....	10
Business Mileage.....	5.12.....	60
Classroom Size/Maximum Number of Pupils.....	3.05.....	10
College/Licensure Testing Reimbursement.....	5.08.....	55
Complete Agreement.....	6.03.....	61
Contract Year.....	3.09.....	12
Distribution of Agreement.....	1.07.....	5
Definitions.....	2.01.....	7
Duration of Agreement.....	6.07.....	63
Educational Service Personnel.....	3.07.....	12
Employee Discipline.....	3.24.....	35
Extended Contracts.....	5.04.....	53
Fair Share Fee.....	6.06.....	62
Family and Medical Leave.....	4.09.....	49
General Procedures.....	2.04.....	8
Grievance Impasse.....	2.03.....	8
Health and Safety Concerns.....	3.19.....	25
Inclusion.....	1.05.....	5
Initiating and Processing.....	2.02.....	7
Insurance Benefits.....	5.10.....	57
A. Medical		
B. Dental		
C. Life		
D. Liability		
E. Vision		
F. Rx Drugs		
G. Wellness Benefit		
H. Flexible Spending Account		
In-Term Bargaining on No Child Left Behind Requirement (“NCLB”)....	1.08.....	5
Jury Duty.....	4.06.....	47
Labor-Management Committee.....	3.25.....	37
Leave of Absence.....	4.07.....	47
Leave for Relatives of Military Personnel.....	4.11.....	50
Local Professional Development Committee.....	3.22.....	34
Long Distance Learning.....	3.20.....	25
Lunch Duties.....	3.03.....	10
Negotiation Procedure.....	1.04.....	2
Negotiation Teams.....	1.03.....	2
No Reprisals.....	6.05.....	62
No Strike.....	6.02.....	61

	<u>Section</u>	<u>Page No.</u>
Non-renewal of Contracts	3.12.....	19
Notification of Eligibility for Continuing Contract	5.13.....	60
Notification of Eligibility for Raise in Salary Level.....	5.14.....	60
Open Enrollment.....	3.27.....	38
Parental Leave.....	4.04.....	45
Payroll Deductions.....	5.03.....	52
Personal Leave.....	4.01.....	41
Personnel Files	3.18.....	24
Planning Time/Daily Minimum/Emergency Substitution/Scheduling of Classes Between Buildings.....	3.06.....	11
Policies and Procedures	3.15.....	24
Preamble	1.01.....	1
Preparation of IEP Reports by Special Needs Teachers	3.30.....	40
Principal/Grade Division Ratio.....	3.01.....	10
Professional Leave.....	4.03.....	44
Proofreading Final Agreement.....	1.06.....	5
Provisions Contrary to Law	6.01.....	61
Public Pre-school Program	3.28.....	38
Recognition	1.02.....	1
Reduction in Force.....	3.10.....	13
Re-employment of an STRS Retired Teacher	3.29.....	39
Reimbursement for BCI FBI Checks.....	5.15	60
Release of Personal Information.....	3.26.....	38
Resident Educator Program	3.21.....	26
Salary Payment	5.02.....	52
Salary Schedule.....	5.01.....	52
Secretary/Building Ratio.....	3.02.....	10
Section 125 Account.....	5.11.....	59
Sequence of Contracts.....	3.16.....	24
Severance Pay	5.09.....	56
Sick Leave.....	4.02.....	42
Sick Leave Bank	4.10.....	50
Smoke Free Environment	3.14.....	24
Student Discipline and Professional Staff Member Protection.....	3.23.....	35
Supplemental Contracts	5.05.....	54
Tax Shelter of STRS	5.06.....	55
Teacher Evaluation System.....	3.13.....	19
Teacher Workday.....	3.08.....	12
Transfers, Assignments and Vacancies.....	3.11.....	15
Workload.....	3.17.....	24